

FR. NO : 34873 / 2024.

O/c.

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
PRESENTATION FORM

WRIT PET No 34873 36214 / 2024

Serial No. _____

Advocate Sri

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Bengaluru (R) District

Between

SRI. P. MURTHY &

OTHERS

And

STATE OF KARNATAKA

& ORS.

Sl. No.	Description of Paper Presented	Court Fee Affixed on the Paper
1.	On the Memo of <u>WRIT</u> petition	
2.	On the Memo of Appeal	
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Date 17.12.2024

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT PETITION No.36214/2024

BETWEEN:

SRI. P.MURTHY & OTHERS

... PETITIONERS

AND:

STATE OF KARNATAKA & OTHERS

...RESPONDENTS

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Place: Bangalore

Date: 17.12.2024

Advocate for Petitioners
(T Yugandhar)

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT PETITION No. _____/2024

BETWEEN:

SRI. P.MURTHY & OTHERS

... PETITIONERS

AND:

STATE OF KARNATAKA & OTHERS

...RESPONDENTS

SYNOPSIS

Sl/No.	Date	Particulars
1.	06.06.1958	The Grandmother of the Petitioners, Smt. Narasamma @ Moogamma purchases the Lands to an extent of 02 Acres 37 Guntas, in Sy. No.24/3, Situated at Valagerehalli Village, Kengeri Hobli, Bangalore South Taluk, Bangalore i.e., Schedule Land.
2.	1968-69	The Khatha of the Schedule Lands are mutated onto the name of Smt. Narasamma @ Moogamma vide MR No.1/68-69 and her name is entered in RTC/Pahanies as owner and she along with her family members are in possession, cultivation and enjoyment of the Schedule Land.
3.	19.01.1989	The Bangalore Development Authority (BDA) notifies the Schedule Land for formation of Jnanabharathi layout.
4.	08.02.1989	The BDA issued Notice to Smt. Narasamma @ Moogamma, under section 17(5) of BDA Act, with respect of Schedule land.
5.	07.04.1989	Smt. Narasamma @ Moogamma files objections to BDA.
6.	12.09.1995	Smt. Narasamma @ Moogamma expires leaving behind the Petitioner and Respondents No.11 to 15, as her legal heirs to succeed to the Schedule Lands by way on intestate succession.
7.	12.03.2001	Sri. H.Shankarappa, S/o Late. Hanumagangappa, the husband of Respondent No.6 and the father of Respondents No.7 and 8, behind the back of these petitioners, has filed an application with the Respondent No.4, seeking to change the Survey No.24/8 of Valagerehalli Village to the Sy. No.24/3 of Valagerehalli Village, on the premise that during Registration of their Sale Deed dated: 06.02.1967, the Survey number was wrongly mentioned as 24/8, instead of 24/3

		and that they are in possession of lands in Sy. No.24/3 and not in Sy. No.24/8 and hence sought for rectification of Survey numbers.
8.	09.04.2001	The Respondent No.5 is said to have prepared an enquiry report with respect of lands in Sy No.24/3 and 24/8 of Valagerehalli Village, suo motto and is said to have filed his report in RRT (1) CR 1968/2000-01 to the Respondent No.3.
9.	27.03.2002	These Petitioners have also filed their objections to the Acquisition Notification, to the BDA.
10.	2002	Sri. H.Shankarappa, along with his brothers, the Respondents No.9 and 10 have filed an Appeal, in R.A (S) 14/2001-02, before the Respondent No.3, seeking to direct the Respondent No.4 to change the revenue records of Schedule lands onto their names.
11.	03.03.2003	The Respondent No.3 thereby setting aside the entries made in the name of Smt. Narasamma @ Moogamma in Column No.9 and 12(2) of the RTC in respect of Schedule land and has directed the Respondent No.4 to enter the names of the said Sri. H.Shankarappa and Respondents 9 and 10 by way of inheritance, in respect of Schedule Lands in Column No.9 and 12(2) of the RTC, subject to Civil litigation.
12.	2006	The Respondents No.11 and 12 alone have preferred a revision petition, challenging the impugned Order passed by the Respondent No.3, before the Respondent No.2, in R. P. No.108/2006-07.

Aggrieved by the impugned Orders passed by the Respondent No.2 and 3 at Annexures - 'A' & 'B', these Petitioners have filed this Writ Petition on following grounds:

1. The impugned Orders passed by the Respondents No. 2 and 3 is without application of mind. The impugned Orders have been passed on the bases of fabricated, frivolous and false stories of the Respondents No. 9 and 10 and their brother Shri. H Shankarappa. The Respondents No. 2 and 3 have made conclusions with respect to Sale Deeds of the

parties herein, which is out of their jurisdiction. It is well settled law that the revenue Authorities have no jurisdiction to decide the titles of the parties and only a competent civil court can decide issues pertaining to the titles of a immovable property such as the schedule land.

2. The Respondent No.3 has not issued any notices to the said Narasamma @ Moogamma before adjudicating the Revenue Appeal. The name of the said Narasamma @ Moogamma and the BDA was appearing in column No.9 of the RTC's for the year 1991-92 to 1995-96 which the Respondent No.3 has perused and mentioned in the impugned orders hence the impugned orders passed by the Respondent No.3 and further by Respondent No.2 is against the principle of natural justice.

Place:Bangalore

Date: 17.12.2024

Advocate for Petitioners
(T Yugandhar)

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
(Memorandum of Writ Petition under Articles 226 and 227 of Constitution
of India)
(SUPERVISORY JURISDCITION)

WRIT PETITION No. _____ /2024

BETWEEN:

- 1. SRI. P.MURTHY,**
S/o. Late. Puttappa,
Aged about 54 years,
- 2. SMT. P.NIRMALA,**
D/o. Late. Puttappa,
Aged about 51 years,
- 3. SRI. P.SHANKARA**
@ SHANKARANARAYANA,
S/o. Late. Puttappa,
Aged about 50 years,
- 4. SMT. P.MANGALA,**
D/o. Late. Puttappa,
Aged about 48 years,
- 5. SRI. SRINIVASA,**
S/o. Late. Ramakrishnappa,
Aged about 44 years,
- 6. SMT. PUSHPA,**
D/o. Late. Ramakrishnappa,
Aged about 44 years,
- 7. SRI. K.C.ANJANAPPA,**
S/o Late Chinnappa,
Aged about 70 years,

All are residing at Valagerahalli
Village, Kengeri hobli,
Bangalore South Taluk – 560 060.

... PETITIONERS

AND:

- 1. STATE OF KARNATAKA,**
Revenue Department,
M S Building, Dr Ambedkar Road,
Bangalore – 560 001.

2. THE SPECIAL DEPUTY COMMISSIONER,

Bangalore Urban District,
K G Road, Bangalore - 560 009.

3. THE ASSISTANT COMMISSIONER,

Bangalore South Sub Division,
Bangalore, K G Road,
Bangalore - 560 009.

4. THE TAHSILDAR,

Bangalore South Taluk,
K G Road, Bangalore - 560 009.

5. THE REVENUE INSPECTOR,

Kengeri Circle,
Bangalore South Taluk,
No.1103, 1st Main, 4th Cross Rd,
I Stage, Kengeri Satellite Town,
Bangalore - 560 060.

6. SMT. KAMALAMMA,

W/o Late. H.Shankarappa,
Aged about 60 years,

7. SMT. ASHARANI,

D/o Late. H.Shankarappa,
Aged about 20 years,

8. SRI. KIRAN KUMAR,

S/o Late. H.Shankarappa,
Aged about 19 years,

9. SRI. H. ANJANAPPA,

S/o Late. Hanumangangappa,
Aged about years,

10. SRI. H. RAMESH,

S/o Late. Hanumangangappa,
Aged about years,

Sl/No. 6 to 10 are residing at No.24/8,
Yamuna Road, Near Sri Krishna Temple,
K.H.B. Colony, Kengeri Satellite Town,
Bangalore - 560 060.

11. SRI. MUNIVENKATAPPA,

S/o Late. Hanumappa,
Aged about 62 years,

12. SRI. SANJEEVAPPA,

S/o Late. Hanumappa,
Aged about 54 years,

13. SRI. R. VISHWANATH,

S/o. Late. Radhakrishna,
Aged about 44 years,

14. SMT. REVAMMA,

W/o Late. Nagaraja,
Aged about 65 years,

15. SRI. SRINIVASA,

S/o Late. Nagaraja,
Aged about 42 years,

Sl/No.11 to 15 are residing at
Valagerahalli Village, Kengeri Hobli,
Bangalore South Taluk - 560 060.

...RESPONDENTS

**MEMORANDUM OF WRIT PETITION UNDER ARTICLES
226 AND 227 OF THE CONSTITUTION OF INDIA**

The Petitioners most respectfully submits as follows:

1. The addresses of the Petitioners for the purposes of issuance of notice, etc., from this Hon'ble Court are as mentioned in the cause title. The Petitioners may also be served through his Counsel, Shri. T.Yugandhar, Advocate, No.8, Prabhat Complex, I Floor, Office No.328 & 329, K G Road, Bangalore - 560 009.
2. The addresses of the Respondents for the purpose of similar purposes such as issuance of notice, etc., from this Hon'ble Court are as set out in the cause title.
3. The Petitioners herein being aggrieved by the impugned Order dated: 19.04.2010 passed by the Respondent No.2 in Revision Petition No.108/2006-07, confirming the impugned

Order dated: 03.03.2003, passed by the Respondent No.3, in R.A. (S) 14/2001-02, have approached this Hon'ble Court seeking appropriate reliefs, on the following facts and grounds. The Certified Copy of the impugned Orders dated: 19.04.2010 and 03.03.2003 are herewith produced and marked as **Annexure - 'A' & 'B' respectively**, for the kind perusal of this Hon'ble Court.

I. BRIEF FACTS OF THE CASE

4. The Petitioners and the Respondents No.11 to 15 are the joint and absolute owners, in peaceful possession and enjoyment of the Lands to an extent of 02 Acres 37 Guntas, in Sy. No.24/3, Situated at Valagerehalli Village, Kengeri Hobli, Bangalore South Taluk, Bangalore, which is more fully described in the schedule herein and hereinafter called as the Schedule Lands.
5. The Schedule Lands was purchased by the Grandfather of the Petitioners and the Respondents No.11 to 15, Sri. Gare Sanjeevappa, in the name of his wife, Smt. Narasamma @ Moogamma, in terms of a Registered Sale Deed dated: 06.06.1958 and from the date of purchase, the said Narasamma @ Moogamma is in possession and enjoyment of the Schedule Lands. The Revenue records of the Schedule Lands are mutated on the name of the said Smt. Narasamma @ Moogamma, by the jurisdictional Revenue Authorities, vide MR No.1/1968-69 and her name was entered in the pahanies/RTCs. The Copy of the Sale Deed dated: 06.06.1958 and the RTC are herewith produced and marked as **ANNEXURE - 'C' & 'D' respectively**, for the kind perusal of this Hon'ble Court.
6. Thereafter, the Bangalore Development Authority (BDA), Bangalore has notified the Schedule Land for formation of Jnanabharathi layout, by its notification dated: 19.01.1989. The BDA has issued Notice regarding the same on 08.02.1989 to the said Smt. Narasamma @ Moogamma, who is the

Khathedar of the Schedule Lands. The said Smt. Narasamma @ Moogamma has filed objections to the said notification of the BDA. Later, the said Smt. Narasamma @ Moogamma has expired on 12.09.1995, leaving behind the Petitioners and Respondents No.11 to 15, as her legal heirs to succeed to the Schedule Lands by way on intestate succession. The Petitioners and the Respondents No.11 to 15 are in joint possession of the Schedule Lands till date. Thereafter, these Petitioners have also filed their objections to the Acquisition Notification, to the BDA, on 27.03.2002. The Copy of the Notice issued by the BDA and the objections filed by these Petitioners are herewith produced and marked as **ANNEXURE - 'E' & 'F' respectively**, for the kind perusal of this Hon'ble Court.

7. The Petitioners has stopped tilling the Schedule lands after the adjacent lands were developed into a residential Layout. The BDA has not taken possession of the Schedule Land nor it has been landscaped the Schedule lands. In the meanwhile, several persons, taking advantage of the vacant lands has started fabricating documents and have made false claims in the Schedule lands, hence, these Petitioners have preferred an original Suit for injunction in O.S. No.9633/2004, pending on the file of the Additional City Civil and Sessions Judge, Bangalore, against these third parties and also partition of the Schedule Lands amongst themselves, as there was no partition of the Schedule lands. The Plaint in O.S. No.9633/2004, is herewith produced and marked as **ANNEXURE - 'G'**, for the kind perusal of this Hon'ble Court.

8. As the facts stood thus, behind the back of these petitioners, one Sri. H.Shankarappa, S/o Late. Hanumagangappa, the husband of Respondent No.6 and the father of Respondents No.7 and 8, has filed an application on 12.03.2001, with the Respondent No.4, seeking to change the Survey No.24/8 of Valagerehalli Village to the Sy. No.24/3 of

Valagerehalli Village, on the premise that during Registration of their Sale Deed, the Survey number was wrongly mentioned as 24/8, instead of 24/3 and that they are in possession of lands in Sy. No.24/3 and not in Sy. No.24/8 and hence sought for rectification of Survey numbers. The said Application dated: 12.03.2001 is herewith produced and marked as **ANNEXURE - 'H'**, for the kind perusal of this Hon'ble Court.

7. Upon the Application filed by the said Sri. H.Shankarappa to the Respondent No.4, the Respondent No.5 is said to have prepared an enquiry report with respect of lands in Sy No.24/3 and 24/8 of Valagerehalli Village, suo motto and is said to have filed his report in RRT (1) CR 1968/2000-01, on 09.04.2001, along with a sketch and Mahazar, in support his report. The said enquiry report, Survey sketch and Mahazar are herewith produced and marked as **ANNEXURE - 'J', 'K' & 'L' respectively**, for the kind perusal of this Hon'ble Court.

8. The Respondent No.4 is said to have not passed any orders on the Application filed by the said Sri. H.Shankarappa and upon the report filed by the Respondent No.5. Hence, the said Sri. H.Shankarappa, along with his brothers, the Respondents No.9 and 10 have filed an Appeal, in R.A (S) 14/2001-02, before the Respondent No.3, seeking to direct the Respondent No.4 to change the revenue records of Schedule lands onto their names, considering the Petition filed by these Respondents before the Respondent No.4. The Respondent No.3 has allowed the Appeal on 03.03.2003 at Annexure - B, thereby setting aside the entries made in the name of Smt. Narasamma @ Moogamma in Column No.9 and 12(2) of the RTC in respect of Schedule land and has directed the Respondent No.4 to enter the names of the said Sri. H.Shankarappa and Respondents 9 and 10 by way of inheritance, in respect of Schedule Lands in Column No.9 and 12(2) of the RTC, subject to Civil litigation.

9. Thereafter, the Respondents No.11 and 12 alone have preferred a revision petition, challenging the impugned Order passed by the Respondent No.3, before the Respondent No.2, in R. P. No.108/2006-07. The Respondent No.2 has dismissed the said R. P. No.108/2006-07, by its impugned Order dated: 19.04.2010, produced at Annexure - A herein. Being aggrieved by the impugned Order dated: 19.04.2010, passed by the Respondent No.2 in R. P. No.108/2006-07, at Annexure - 'A', and the impugned Order dated: 03.03.2003 passed by the Respondent No.3 in R.A. (S) 14/2001-02 at Annexure - 'B', it has become imminent for these Petitioners to approach this Hon'ble court, as the sole option left to them and as there is no alternative, efficacious remedy in the matter, by filing this Writ Petition on the following among other grounds.

GROUND:

10. The Respondent No.2 has passed the impugned order, solely on the basis of the report submitted by the Respondent No.4, which states that the said Shri. H Shankarappa along with Respondent 9 and 10 are in possession of the schedule lands and the boundaries tallies with the sale Deed dated: 06.02.1967, which is wholly misconceived and against the established position of law. The Revenue inspector in collusion with the said Shri. H Shankarappa along with Respondent 9 and 10, has filed a false report at Annexure-J, by recording false mahzar at Annexure-L. Hence the said report, survey sketch and mahzar is illegal and does not sustain in the eyes of law. Therefore the impugned Order passed by the Respondent No.2, is liable to be quashed.

11. The impugned Orders passed by the Respondents No, 2 and 3 is without application of mind. The impugned Orders have been passed on the bases of fabricated, frivolous and false stories of the Respondents No. 9 and 10 and their brother Shri. H Shankarappa. The Respondents No. 2 and 3

have made conclusions with respect to Sale Deeds of the parties herein, which is out of their jurisdiction. It is well settled law that the revenue Authorities have no jurisdiction to decide the titles of the parties and only a competent civil court can decide issues pertaining to the titles of a immovable property such as the schedule land.

12. The said Shri. H Shankarappa along with Respondent 9 and 10, in collusion with Revenue Authorities and with intention to knock off the schedule land, have fabricated the Revenue Records by altering the survey Number of the schedule land as 24/8, instead of 24/3, without any basis and by creating a bogus documents such as the report filed by the Respondent No.4.

13. The said Smt. Narasamma @ Moogamma has purchased the schedule lands in terms of a Registered Sale Deed dated: 06.06.1958 at annexure- C as aforesaid. A Perusal of this document clearly states the schedule land is bounded on the East by lands belonging Dandu Munishamappa, West by lands belonging to Imam peer Sab, North by lands belonging to Vaddara Nanjappa and Nagaraj and South by lands belonging to Bagalur Munishamappa. Similarly, the lands purchased by Shri Humagangappa, the Father of Shri.H. Shankarappa and Respondents No. 9 and 10 in survey No. 24/8 of Valagerehalli village to an extent of 02 Acres, in terms of a registered sale deed dated: 06.02.1967, is bounded on the East by Halla, West by land belonging to Gaalarasappa, North by ox's path way and South by lands belonging to Akkamma, Maaramma and Basavaraju. The Copy of the Sale Deed dated: 06.02.1967 is herewith produced and marked as **ANNEXURE - 'M'**, for the kind perusal of this Hon'ble Court. These documents prove beyond doubt that the schedule lands belonging to Smt. Narasamma @ Moogamma, are quite different from the lands belonging to the said Shri.H.Shankarappa, Respondents No. 9 and 10. The Respondent No.2 and 3 not following the established rules and procedures in law and on the basis of

false and concocted report submitted by Respondent No.4 has passed the impugned orders which are liable to be quashed.

14. The Respondent No.3 has not issued any notices to the said Narasamma @ Moogamma before adjudicating the Revenue Appeal. The name of the said Narasamma @ Moogamma and the BDA was appearing in column No.9 of the RTC's for the year 1991-92 to 1995-96 which the Respondent No.3 has perused and mentioned in the impugned orders hence the impugned orders passed by the Respondent No.3 and further by Respondent No.2 is against the principle of natural justice.

15. The Sale Deed of the said Smt. Narasamma @ Moogamma, is a prime facie evidence of the possession over the schedule lands, reflecting her ownership on the same. The Respondents No.2 and 3 by passing the impugned orders on a report prepared by Respondent No.4 have made futile attempts to bestow titles of the schedule lands over the said Sri. H.Shankarappa, Respondents No.9 and 10, which is unknown to law. Hence, the impugned orders passed by the Respondent No. 2 and 3 are liable to be quashed.

16. The said Sri. H.Shankarappa, Respondents No.9 and 10 have not challenged the MR No.1/68-69, mutated in favour of Smt. Narasamma @ Moogamma by the same revenue Authorities with respect to the Schedule lands on the basis of her Sale Deed, but have challenged the revenue entries on the false claims that they are in possession of the Schedule lands , upon which the impugned Orders have been passed by the respondents No.2 and 3 erroneously and without following due process of law.

17. The petitioners have not filed similar petitions against the Respondent for the same cause of action before any court or authority.

18. The petitioners have come to know about the impugned orders on 29.10.2024, when the Respondents No.6 to 10, have made attempts to interfere in the peaceful possession of these petitioners over the schedule lands, claiming that the schedule lands belong to them. Soon thereafter these petitioners have procured the necessary documents pertaining to the schedule lands and after ascertaining the fraud committed by Respondent No. 6 to 10 have preferred this Writ petition.

III PRAYER:

WHEREFORE, the Petitioners most humbly pray that this Hon'ble Court may be pleased to

- i) Issue a WRIT of Certiorari, quashing/Set-aside the Order dated: 19.04.2010 passed by the Respondent No.2 in Revision Petition No.108/2006-07, produced at Annexure -'A';
- ii) Issue a WRIT of Certiorari, quashing the report dated: 09.04.2001, prepared by the Respondent No.4 and filed in RRT (1) CR 1968/2000-01, produced at Annexure -'J';
- iii) Issue any such orders as this Hon'ble Court may deem fit under the facts and circumstances of the case, in the interest of justice and equity.

SCHEDULE

All that piece and parcel of Lands to an extent of 02 Acres 27 Guntas, in Sy. No.24/3, situated at Valagerehalli Village, Kengeri, Bangalore South Taluk, Bangalore and is bounded on the:

East by :	lands belonging Dandu Munishamappa;
West by :	lands belonging to Imam peer Sab;
North by :	lands belonging to Vaddara Nanjappa and Nagaraj; &
South by :	lands belonging to Bagalur Munishamappa.

Place:Bangalore

Date: 17.12.2024

Advocate for Petitioners
(T Yugandhar)

Address for Service:

T.YUGANDHAR,
Advocate,
No.8, PRABHAT Complex, I Floor,
Office No.328 & 329, K G Road,
Bangalore - 560 009.
Email:yugan_vaid@rediffmail.com
Mob: 9980158053

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WRIT PETITION No. _____/2024

BETWEEN:

Sri. P. MURTHY & Others ... Petitioners.

AND:

State of Karnataka & others ... Respondents

VERIFYING AFFIDAVIT

I, Murthy, S/o late Puttappa, aged about 54 years, residing at Valagerehalli Village, Kengeri Hobli, Bangalore South Taluk, Bengaluru - 560 060, do hereby solemnly affirm and state on oath as follows:

1. I am the 1st petitioner in the above case. I am conversant with the facts of the case. Accordingly, I am swearing to this affidavit on my behalf and on behalf of other petitioners.
2. I state that the averments made in paragraphs 1 to 18 of the Writ Petition accompanying this affidavit are true to the best of my knowledge, information and belief.
3. I state that the documents produced at Annexure - A to M are true copies of their respective originals.

I do hereby declare that, this is my name and signature and what are stated above are true and correct to the best of my knowledge, belief and information.

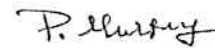
Identified by me,



Advocate.

Bengaluru,

Date: 17.12.2024


Deponent.

(82)

IN THE COURT OF THE SPECIAL DEPUTY COMMISSIONER,
BANGALORE DISTRICT,
Bangalore-560 009, dated this the 19th day of April 2010.

Present: Shri H. Ramanjaneya, K.A.S.,
Special Deputy Commissioner,
Bangalore District.

No.REVN.PETN.108/2006-07.

Petitioner: 1. Shri Munivenkatappa s/o
Hanumaiah,
Valagerehalli village,
Kengeri Hobli,
Bangalore South Taluk.

2. Shri R. Viswanath s/o
Radhakrishna,
Valagerehalli village,
Kengeri Hobli,
Bangalore South Taluk.

Respondents: 1. Shri H. Shankarappa s/o
Late Hanuma Gangappa,

2. Shri H. Anjanappa s/o
Late Hanuma Gangappa,

3. Shri H. Ramesh s/o
Late Hanuma Gangappa,

1 to 3 are residing at:
D.No.24/8, Yamuna Road,
Near Sri Krishna Temple,
KHB.Colony,
Kengeri Satellite Town,
Bangalore-560 060.

4. The Tahsildar,
Bangalore South Taluk,
Bangalore.

5. The Assistant Commissioner,
Bangalore South Sub Division,
Bangalore.

Yan

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This is a Revision Petition preferred under Section 136(3) of the Karnataka Land Revenue Act, 1964 (hereinafter referred to as the 'Act' in brief) against the Order of the Assistant Commissioner, Bangalore South Sub Division, Bangalore in No.R.A.(S)14/2001-02 dated 3rd March 2003 while setting aside the mutation effected in the name of Smt.Narasamma @ Mangamma in respect of the land in S.No.24/3 measuring 2A.37gs., situated at Valagerehalli village, Kengeri Hobli, Bangalore South Taluk and directing the Tahsildar to enter the names of the Respondents-1 to 3 herein in respect of the said land in column No.9 and 12(2) of the RTCs., however subject to the decision of the civil court in the litigation if any between the parties.

The Revision Petition was taken on file, an interim order to maintain 'statusquo' was issued and the case was posted for hearing with due notice to both the parties to appear before this Authority and represent their case.

The counsel for the Petitioners and the Respondents-1 to 3 argued the matter.

It is contended on behalf of the Petitioners that they being aggrieved by the Order of the Assistant Commissioner, Bangalore South Sub Division, Bangalore in No.R.A.(S)14/2001-02 dated 3rd March 2003, have filed this Revision Petition assailing the same; that the land in question i.e., S.No.24/3 measuring 2A.37gs., situated at Valagerehalli village originally belonged to one Shri Chikka Narasimhaiah; that he has sold the land in favour of Shri Venkatanarasappa s/o Perumale Gowda of Gottigere village; that the said Venkatanarasappa in turn has sold the said land in favour of the grand mother of the Petitioners i.e., Smt. Narasamma @ Moogamma w/o Gare Sanjeevappa under the registered sale deed dated 6.6.1958; that since then she was in possession and enjoyment of the said land along with another land in S.No.25 measuring 1A.35gs., of

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Valagerehalli village; that after her death, her sons were in possession and enjoyment of the said lands as its absolute owners; however, the revenue records in respect of the said lands were continuing in the name of Smt. Narasamma @ Moogamma. When such was the case, the Respondents-1 to 3 have submitted a Petition before the Tahsildar on 12.3.2001 requesting for change of S.No., in their name in respect of the land as S.No.24/3 instead of S.No.24/8 of Valagerehalli village; that in the said petition, they have stated that they are the sons of Hanuma Gangappa @ Chikkathayappa who died on 11.11.1988; that their father has acquired the land in S.No.24/3 measuring 2A.37gs., from one Shri Madaiah and his wife Smt.Hanumakka; that the Respondents-1 to 3 have further alleged that at the time of execution of the Sale Deed in favour of their father a mistake has crept in while mentioning the S.No.24/8 instead of S.No.24/3; that the Respondents 1 to 3 have alleged that the revenue records of S.No.24/8 are in the name of their father and the said land belonged to Smt.Narasamma @ Moogamma and the same has been acquired by Malleswaram Tailoring House Building Co-operative Society Ltd., that accordingly Smt.Narasamma is not in possession and enjoyment of the land in S.No.24/8; that it is also alleged that the Respondents-1 to 3 have noticed the said mistake of mentioning wrong survey number; that then they gave the petition to the 4th Respondent on 12.3.2001 for rectification of the said S.No., that however, the 4th Respondent did not consider their application; that accordingly, they have filed an Appeal before the Assistant Commissioner and sought for a direction to the Tahsildar to enter their names in respect of the land in S.No.24/3 measuring 2A.37gs., that they have stated that they are interested only in S.No.24/3 and not in S.No.24/8; that on the basis of the said pleadings of the Respondents-1 to 3, the Assistant Commissioner without giving any opportunity of being heard to the petitioners herein or their grand mother Smt.Narasamma @ Moogamma and without verifying the records has passed the order impugned herein causing great injustice to the Petitioners herein. It is submitted that the Petitioners are the absolute owners of the land in

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S.No.24/3 measuring 2A.37gs., that the Respondents-1 to 3 are having no right, title and interest over the said land; that the Petitioners are the owners of the land in S.No.24/3; that the Assistant Commissioner has no jurisdiction to rectify the S.No.24/3 and assign it to the Respondents-1 to 3; that on the basis of the said Order of the Assistant Commissioner, the Respondents-1 to 3 have managed to obtain the revenue records of both the survey numbers in their name viz., S.No.24/3 and 24/8 which is illegal; that in the revenue records like the RTC of S.No.24/8 the name of Smt.Narasamma @ Moogamma is shown as Khatedar and in column No.10 it is shown as Gift; however in the cultivator/s column No.12(2) the names of the Respondents-1 to 3 is shown; it is also illegal; that in nutshell the Assistant Commissioner has no jurisdiction and powers to change the S.No.24/8 to 24/3 in favour of the Respondents-1 to 3; that in these circumstances it is requested to set aside the order of the Assistant Commissioner in No.RA(S)14/2001-02 dated 3.3.2003 and direct the concerned to restore the Khata of the land in S.No.24/3 in the name of Smt.Narasamma @ Moogamma as stood before in the interest of justice and equity

On the contrary, it is the contention on behalf of the Respondent-1 that the Revision Petition is not maintainable either in law or on facts; that the Petitioners have no legal right to file the instant Revision Petition; that the Revision Petition is barred by limitation. It is submitted that the Respondents 1 to 3 are brothers and sons of Late Hanuma Gangappa; that the said Hanuma Gangappa died on 11.11.1988; that their father Hanuma Gangappa @ Chikka Thayappa has acquired the land in S.No.24/3 measuring 2A.37gs., of Valagerehalli village from one Shri Madaiah and his wife Smt.Hanumakka under the registered Sale Deed dated 6.2.1967; that at the time of execution of the sale deed, a mistake has been crept in while mentioning the S.No.24/3 and the same has been mentioned as S.No.24/8, but, the boundaries specified in the sale deed pertain to S.No.24/3 only and accordingly, the father of these Respondents

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was in possession and enjoyment of the said land (S.No.24/3); that after his death, the Respondents-1 to 3 being his sons are in joint possession and enjoyment of the said land; that there is an estate house and the Respondents-1 to 3 are residing in the said portion and there is a well and the land is used for agricultural purpose; that they have developed the said land by spending huge money; that the records pertaining to the land in S.No.24/8 have been entered in the name of one Smt.Narasamma @ Mangamma and the same land has been acquired by Mallewaram Tailoring Co-operative Society and the sites have been sold in the said S.No.24/8; that the said Narasamma @ Mangamma has not been in possession and enjoyment of the land in S.No.24/8 and the purchasers have been in possession and enjoyment of the land in S.No.24/8; that the land in S.No.24/3 is the land belonging to the Respondents-1 and 3 and the land in S.No.24/3 and S.No.24/8 have been exchanged and it is an error committed by the revenue authorities and in this regard, the Respondents-1 to 3 had filed an application before the Tahsildar, Bangalore South Taluk stating that the land in S.No.24/3 has been wrongly mentioned as S.No.24/8 and the Respondents-1 to 3 are concerned in respect of the land in S.No.24/3 and the name of the Respondents-1 to 3 has to be entered in the land in S.No.24/3 since they have been in possession and enjoyment of the said S.No.24/3; that they have also given the correct boundaries to the land in S.No.24/3 measuring 2A.27gs., and also directed the Tahsildar to durasth the land in possession of the Respondents-1 to 3 and such a petition was given by the Respondents-1 to 3 on 12.3.2001 and based on the said petition, the Tahsildar directed the survey authorities to prepare a sketch in respect of the land S.No.24/3 and S.No.24/8 and also prepared a detailed report and in this regard the Revenue Inspector concerned has submitted a report as per No.RRT(1)CR.1068/2000-01 and the said report was sent to the Tahsildar, Bangalore South Taluk. It is submitted that the Respondents-1 to 3 were not aware with regard to the entries made in respect of the land in S.No.24/8 and the Respondents-1 to 3 who are brothers came to know about the said mistake in respect of the land in

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S.No.24/3 only when the Gazette Notification was issued pertaining to the land in S.No.24/8 held by Smt,Narasamma @ Moogamma and in this regard, the Respondents-1 to 3 gave a representation to the Tahsildar for change of S.No., as these Respondents were under the impression that the revenue records will be transferred and changed into the name of these Respondents and in spite of the same, the Tahsildar has not changed the revenue records in respect of the land in S.No.24/3 in their name and having no other alternative, these Respondents had preferred an Appeal before the Assistant Commissioner, Bangalore South Sub Division, Bangalore in RA.No.14/2001-02 seeking for directions to the Tahsildar to enter the name of the Respondents-1 to 3 jointly in respect of the land in S.No.24/3 measuring 2A.27gs., situated at Valagerehalli village and Malleswaram Tailoring House Building Co-operative Society was also made as a party to the said proceedings and subsequently, by the Order dated 3.3.2003, the Assistant Commissioner has passed the order; and based on the said order, the Khata in respect of the said land S.No.24/3 has been transferred to the name of the Respondents-1 to 3; that neither the father of the Respondents-1 to 3 or the Respondents-1 to 3 have not sold the land in S.No.24/3; that it is after the revenue records were being transferred to the name of the Respondents-1 to 3, they have sold the said land in favour of one Hiremath and the said Hiremath is in possession and enjoyment of the said land.

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It is submitted that the Petitioners have no any manner of right, title and interest over the land in S.No.24/3 and that therefore they were not made as parties to the said proceedings; that the claim of the Petitioners that the land in S.No.24/3 originally belonged to one Chikkanarasimhaiah and he has sold the same in favour of Venkataramanappa s/o Perumalegowda of Gottipura village and the said Venkataramanappa in turn has sold the land in question in favour of the grandmother of the Petitioners Smt.Narasamma @ Moogamma w/o Sanjeevappa of Valagerehalli village under the registered sale deed dated

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6.6.1958 and since then she was in possession and enjoyment of the land along with another land in S.No.25 measuring 1A.35gs., as its absolute owner and the revenue records were standing in her name are all false and untenable. It is also pertinent to state that the Petitioners have also filed the suit for the relief of partition and separate possession of the land in S.No.25 and 24/3 and they have also sought for a direction directing the Government of Karnataka not to give any rights on the basis of the revenue entries made in the name of the Defendants and the Respondents-1 to 3 are not made as parties to the said civil suit and subsequently, these Respondents having come to know about the said civil suit, they have got impleaded in the said suit in O.S.No.9633/2004 and it is pending adjudication. It is submitted that when the Petitioners have filed a suit for the relief of declaration and it is pending before the Civil Court, the question of filing the Revision Petition before this authority does not arise. It is submitted that the Petitioners have not made out a case for interfering with the orders of the Assistant Commissioner and the order made by the Assistant Commissioner is in accordance with law; that the other allegations made by the Petitioners are contrary to the stand taken by these Respondents; that in these circumstances, it is requested to dismiss the Revision Petition in the interest of justice.

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O R D E R.

I have carefully examined the records and considered the contentions putforth on both the sides.

In the instant case, the claim of the Petitioners is that their grandmother Smt.Narasamma has purchased the land in S.No.24/3 measuring 2A.37gs., situated at Valagerehalli village, Kengeri Hobli, Bangalore South Taluk under the registered Sale Deed dated 6.6.1958 and since then they are in possession of the same. But, the Respondents-1 to 3 who are the owners of the land in S.No.24/8 have got changed the

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S.No.24/8 to S.No.24/3 contending that there is a mistake in mentioning the S.No.24/8 instead of S.No.24/3 in the Sale Deed and that they are in possession and enjoyment of the land in S.No.24/3 of Valagerehalli village, Kengeri Hobli, Bangalore South Taluk.

Whereas the claim of the Respondents-1 to 3 is that the land in S.No.24/3 was purchased by their father under the registered Sale Deed dated 6.2.1967 with the specific boundaries which tally with the land in S.No.24/3 and they are in possession and enjoyment of the same. And by mistake there is exchange of S.Nos., and that therefore they had requested to mutate their names in respect of the land in S.No.24/3 instead of the land in S.No.24/8. Since the Tahsildar has not taken action in this regard, they had filed an Appeal before the Assistant Commissioner. In the Appeal, the Assistant Commissioner has directed the Tahsildar to mutate the land in S.No.24/3 measuring 2A.37gs., of Valagerehalli in the names of these Respondents by inheritance. The Petitioners have no any manner of right and title over the land in S.No.24/3 of Valagerehalli village, Kengeri Hobli, Bangalore South Taluk.

On looking into the records and the order of the Assistant Commissioner, as is clear from the report of the Revenue Inspector, the Respondents-1 to 3 are in possession of the land in S.No.24/3 with the specific boundaries specified in the Sale Deed dated 6.2.1967 under which their father has purchased the land from one Shri Madaiah. Apart from this, as is clear from the narrations made by the Assistant Commissioner and the status report of the Revenue Inspector that the land in S.No.24/8 was held by Smt.Narasamma @ Moogamma, the grand mother of the Petitioners and it has been acquired by Malleswaram Tailoring House Building Co-operative Society Ltd., sites have been formed and disposed of in favour of its members. Thus, it is clear that the land in S.No.24/8 was held by Smt.Narasamma @ Moogamma and it has already been acquired by the said Malleswaram Tailoring Housing Co-operative Society and it

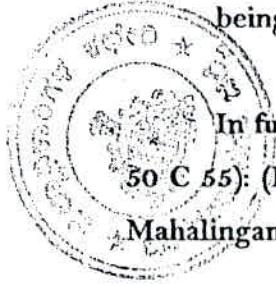
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has been disposed of by forming the sites in the land. At this stage, it would be relevant to refer to the decisions reported in ILR 1988 Karnataka 554: (Narasimha Sastry vs. Mangesha Devaru): in which it is held that:

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Deed / Instrument: construction – in ascertaining actual area sold, recitals as to boundaries should prevail. HELD: It has been held that where the sale deed mentioned the boundaries specifically and clearly to identify the property, the actual extent of the land not being clear, the recitals as to boundaries should prevail.



In furtherance, in the decision reported in AIR 1963 Madras 147(V 50 C 55): (Dharmakanny Nadar Siviseshamuthu and others Appellants vs. Mahalingam Nadar Goopalakrishna Nadar and others – Respondents)

Deed – construction – Sale Deed – Boundaries of land sold specified exactly – Approximate areas also mentioned – Description of land by boundaries prevail.

Where the property sold is part of a definite survey number and in the sale deed the exact boundaries of the part sold are given and the area mentioned is only approximate, the description by boundaries should prevail in ascertaining the actual property sold under the document.”

In the decision reported in AIR 1963 Supreme Court 1879(V.C.207), it is held that::

Civil P.C.1908 O.21-R.94: Conflict between boundaries and Khata No.and Plot No. – Khata No. and boundaries held prevailed.

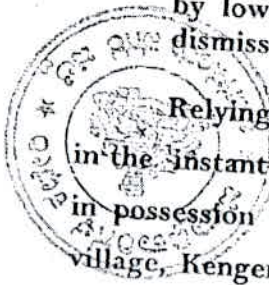
The final decree for sale and the sale certificate gave Khata number and the boundaries of the property sold and plot No.160. The Khata number and the boundaries however all referred to Plot No.1060:

Held: that it was a case of misdescription and the identity of the property sold and plot No.1060. The mistake in the plot number must be treated as a misdescription which did not affect the identify of the property sold.

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Added to the above in the decision reported in 2000(1) KCCR.106: (Shri Eranath vs. Sri Digamber and another), it is held that:

Code of Civil Procedure: Section 115: Revisional jurisdiction – Trial court granted temporary injunction on strength of revenue records in favour of plaintiff/petitioner – Civil Judge set aside injunction order stating that trial court not considered sale deed executed by plaintiff's father – Where land tally with boundaries and not with number description of property by boundary to prevail – Finding arrived at by trial court after ignoring sale deed completely suffers from arbitrariness and illegality – No jurisdictional error committed by lower appellate court in allowing appeal – Revision Petition dismissed."



Relying on the law and principles laid down in the above decisions, in the instant case, it is clearly made out that the Respondents-1 to 3 are in possession and enjoyment of the land in S.No.24/3 of Valagerehalli village, Kengeri Hobli, Bangalore South Taluk according to the specific boundaries specified in the registered Sale Deed dated 6.2.1967 under which Shri Hanuma Gangappa (since deceased) the father of the Respondents-1 to 3 had purchased the land. Whereas, the land held by Smt. Narasamma @ Moogamma in S.No.24/3 of Valagerehalli village has already been formed as a layout and the sites therein have also been disposed of. In such an event, the Petitioners cannot putforth their claim in respect of the land in S.No.24/3 which is in possession and enjoyment of the Respondents-1 to 3 muchless this land has also not been acquired by the said Society. Apart from this the boundaries specified in the Sale Deed dated 6.2.1967 tally with the boundaries of the land in S.No.24/3 of Valagerehalli village, Bangalore South Taluk. In fact, the Petitioners have already approached the Civil Court in O.S.No.9633/2004 for declaration and partition as well as other reliefs. In the said civil suit the Respondents-1 to 3 herein are also impleaded as Party/Defendants. Thus, the entire issues in the instant matter are seized before the Civil Court.

The Assistant Commissioner, Bangalore South Sub Division, Bangalore having considered all aspects of the matter has ordered to effect

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the Khata of the land in S.No.24/3 measuring 2A.37gs., situated at Valagerchalli village, Kengeri Hobli, Bangalore South Taluk in the names of the Respondents-1 to 3 by way of inheritance.



For the foregoing reasons, there is no reason to interfere with the Order of the Assistant Commissioner, Bangalore South Sub Division, Bangalore in No.RA(S)14/2001-02 dated 3.3.2003 and it is liable to be upheld. Accordingly, it is upheld.

However, it is made clear that the entries in the revenue records are always subject to the decision of the Civil Court. After the decision in the civil suit which is pending before the Civil Court, the parties are at liberty to approach the revenue authorities for such action as may be warranted in accordance with law.

In the result, the Revision Petition is liable to be dismissed.

Accordingly, the Revision Petition is dismissed.

Endorse the parties.

Order pronounced in open court on this the 14th day of April 2010.

(H. Ramanjaneya)
Special Deputy Commissioner,
Bangalore District.

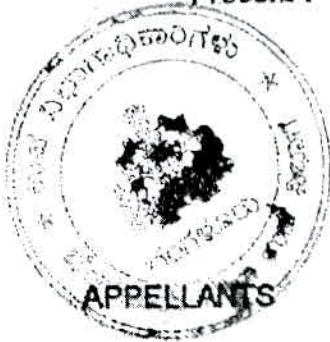
33 4/10/10
Respondents 1, 2 & 3
H. Ramanjaneya
11/10/10
2-11-09
08/11/24
2507
10/11/24

10/11/24
10-8/11/24
08/11/24

IN THE COURT OF THE ASSISTANT COMMISSIONER,
Bangalore South Sub Division,
Bangalore-560 009, dated this the 3 day of March, 2002

Present :

Shri Y.M. Ramachandramurthy, KAS.,
Assistant Commissioner,
Bangalore South Sub-Division.



NO.R.A.(S) 14/2001-02

- : 1. SRI H. SHANKARAPPA,
S/o Late Hanuma Gangappa, Major.
2. SRI H. ANJANAPPA,
S/o Late Hanuma Gangappa, Major.
3. SRI H. RAMESH,
S/o Late Hanuma Gangappa, Major.

All are residing at Valagerehalli
village, Kengeri Hobli,
Bangalore South Taluk.

-VS-

RESPONDENT

- : 1. THE TAHSILDAR,
Bangalore South Taluk,
Bangalore.
2. M/S MALLESWARAM TAILORING
HOUSE BUILDING CO-OPERATIVE
SOCIETY LTD.,
Represented by its Secretary,
No.25, 1st Main Road,
Kodandaramapuram, Malleswaram,
Bangalore -3.

Murthy 3/3/02



This appeal is filed under Section 136(2) read with Section 142 of the Karnataka Land Revenue Act seeking direction against the Respondent in order to change the revenue records into the names of the Appellants jointly by way of inheritance in respect of the land bearing Sy.No.24/3 measuring 2 acres 37 guntas in extent, situated at Valagerehalli village, Kengeri Hobli, Bangalore South Taluk and also by considering the petition filed by the Appellants before the Tahsildar dated 12.3.2001 and for appropriate orders.

The case of the Appellants in brief is that the Appellants 1 to 3 are the sons of Hanuma Gangappa @ Chikka Thayappa who died on 11.11.1988. It is further stated that the father of the Appellants viz., Hanuma Gangappa @ Chikka Thayappa acquired the land bearing Sy.No.24/3 measuring 2 acres 37 guntas under the registered sale deed dated 6.2.1967 from one Madalah and his wife Smt. Hanumakka for valuable consideration and it is further stated that at the time of execution of the sale deed, a mistake has been crept-in while mentioning the survey number as Sy.No.24/3 and instead of the same, it has been mentioned as Sy.No.24/8 but the boundaries stated to in the said sale deed is pertaining to the land bearing Sy.No.24/3 only and accordingly the father of the Appellants was in possession and enjoyment of the said land and after his death, the Appellants being the sons are in joint possession and enjoyment of the said land. It is further stated that there is an estate farm house in the said land and there is also a well in the said land and the Appellants have developed the said property by spending huge amount and the Appellants are residing in the house property existing in the said land. It is further stated that the revenue records pertaining to the land bearing Sy.No.24/8 is in the name of the father of the Appellants

Dr. M. S. 3/3/03

and the said land originally belonged to one Smt. Narasamma @ Mangamma and the said land has been acquired by the Malleswaram Tailoring House Building Co-operative Society Ltd., and the sites have also been formed by the said Society and the same have been sold in favour of various persons and the said Narasamma @ Mangamma is not in possession and enjoyment of the land bearing Sy.No.24/8 and the purchasers of the sites from M/s Malleswaram Co-operative Society Ltd., have been in possession and enjoyment of the sites so formed in the land bearing Sy.No.24/8. It is further stated that the Appellants have noticed that the land bearing Sy.No.24/3 is the land belongs to the Appellants and there is an error committed by the revenue authorities in changing the entries in respect of the said land and after coming to know about the said aspect, the Appellants have given a petition before the Tahsildar for change of survey number in the names of the Appellants in respect of the land bearing Sy.No.24/3 instead of Sy.No.24/8 by giving with specific boundaries for both the lands and such a petition was given by the Appellants on 12.3.2001 and based on the said petition, the 1st Respondent -Tahsildar directed the survey authorities to prepare a sketch in respect of the land bearing Sy.No.24/3 and also the land bearing Sy.No.24/8 and also to file a detailed report in respect of the said lands. Accordingly the Revenue Inspector concerned has submitted a detailed report as per RRT (1) CR : 1968/2000-01 and he has also drawn a mahazar in the presence of the panchayatdars and he has also recommended the Tahsildar to pass appropriate orders by changing the revenue records in the names of the Appellants in respect of the land bearing Sy.No.24/3. It is further stated that the Appellants have not noticed with regard to the sy.no. and the Appellants have noticed the said aspect only when a notification was issued by the Bangalore

M. K. Reddy 3/3/02



Development Authority, wherein the names of the Appellants are not shown in respect of the land bearing Sy.No.24/3 and immediately the Appellants gave a representation before the Tahsildar in the first week of March, 2001 and the Tahsildar has not considered the petition filed by the Appellants and aggrieved by the said entries, the Appellants have preferred this appeal and have sought for a direction, directing the Tahsildar to enter the names of the Appellants jointly in respect of the land bearing Sy.No.24/3 measuring 2 acres 37 guntas on various grounds. It is further stated that the Appellants are the interested persons in respect of the land bearing Sy.No.24/3 and they are no way concerned with regard to the land bearing Sy.No.24/8 and the said land belongs to one Narasamma @ Mangamma and the said land has been acquired by the Society and accordingly the Appellants have prayed for rectification of the said sy.no. In support of their case, the Appellants have produced the xerox copy of the petition filed by the Appellants before the Tahsildar dated 12.3.2001, mahazar drawn by the Revenue Inspector, Death certificate of Hanuma Gangappa, Report given by the Revenue Inspector, Kengeri Circle, Sketch prepared by the Surveyor, Xerox copy of the sale deed dated 6.2.1967 executed by Madalah and his wife Smt. Hanumakka in favour of the father of the Appellants and xerox copy of the RTC for the years 1991-92 to 1995-96 in respect of the land bearing Sy.No.24/8.

At the time of admitting the appeal, I have directed the Appellants to implead the Malleswaram Tailoring House Building Co-operative Society Ltd., as a party and accordingly the said Society has been impleaded as the 2nd Respondent. The notice was also taken by paper publication as against the said Society and inspite of the same, the 2nd

Dr. K. S. Srinivas 3/3/03

Respondent has not appeared and filed his objections. I have also called for the gazette notification from the Special Land Acquisition Officer, Bangalore Development Authority in respect of the lands, situated at Valagerehalli and Nagadevanahalli villages.



ORDER

I have perused the appeal memo and also the documents produced by the Appellants.

It is the contention of the Appellants that the Appellants are the interested persons in respect of the land bearing Sy.No.24/3 measuring 2 acres 37 guntas and their father had acquired the land bearing Sy.No.24/3 from one Madalah and his wife Smt. Hanumakka under the registered sale deed dated 6.2.1967 and it is also stated that their father viz., Hanuma Gangappa died on 11.11.1988. It is further stated that there is a mistake crept-in while mentioning the survey number as Sy.No.24/3 and instead of the same, it has been mentioned as Sy.No.24/8 and what is purchased by the father of the Appellants is the land bearing Sy.No.24/3 and not Sy.No.24/8. It is also contended that the Tahsildar based on the petition filed by the Appellants has directed the Revenue Inspector to conduct mahazar and also to file a report in respect of the lands bearing Sy.Nos.24/3 and 24/8 and as per the said report, it is stated by the Revenue Inspector that the land bearing Sy.No.24/8 was acquired by the Society from Smt. Narasamma @ Mangamma and the sites have been formed by the said Society and the right deeds and possession certificates have also been issued in favour

M. K. M. S. 3/3/03

of the purchasers in respect of the said sites. It is also stated in the report filed by the Revenue Inspector that the land bearing Sy.No.24/3 measuring 2 acres 37 guntas has been purchased by the father of the Appellants and the boundaries stated to in the sale deed pertains to the land bearing Sy.No.24/3 and the Appellants and their father have been in possession and enjoyment of the said land and they have also dug a borewell and they have been residing in the said house for the last 50 years and the sketch is also prepared by the Surveyor showing the existence of the land bearing Sy.No.24/3 which is in possession and enjoyment of the Appellants. The Tahsildar having obtained the report and sketch from the Revenue Inspector with regard to the identity of the property, ought to have passed the revenue records in the names of the Appellants by way of inheritance in respect of the land bearing Sy.No.24/3 and the Tahsildar has failed to consider the petition filed by the Appellants. I have also called for the gazette notification pertaining to 'Gnanabharathi Layout', wherein the land bearing Sy.No.24/3 is also the subject matter of the acquisition. The 2nd Respondent has not filed any objections by contending that he is an interested person in respect of the land bearing Sy.No.24/3 and I do not find that the 2nd Respondent is an interested person in respect of the land bearing Sy.No.24/3 which belongs to the Appellants. In view of the above discussions, I pass the following order :-

The appeal is allowed. The impugned entries made in the name of **Narasamma @ Mangamma** in column No.9 and 12(2) of the RTC in respect of the land bearing Sy.No.24/3 measuring 2 acres 37 guntas of Valagerehalli village, Kengeri Hobli, Bangalore South

[Signature] 3/3/03

Taluk is hereby set aside. The Tahsildar is hereby directed to enter the names of the Appellants by way of inheritance in respect of the land bearing Sy.No.24/3 in column No.9 and 12(2) of the RTC. However, this order shall be subject to the result of the civil litigation, if any between the parties with regard to rights of the parties and ordered accordingly.

Endorse the parties accordingly.

Dictated to the Stenographer, the typescript edited by me, corrected and then pronounced in open court, on this the 3rd day of March, 2003

Y.M. Ramachandramurthy 3/3/03
(Y.M. Ramachandramurthy)
Assistant Commissioner
Bangalore South Sub-Division

"ನಕಲು ನೀಡಿದೆ"

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಛೇರಿಗೆ
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ಉಪ-ವಿಭಾಗ
ಬೆಂಗಳೂರು.

"ನಕಲು ನೀಡಿದೆ"

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಛೇರಿಗೆ
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ಉಪ-ವಿಭಾಗ
ಬೆಂಗಳೂರು.

"ನಕಲು ನೀಡಿದೆ"

R. Bhatya
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಛೇರಿಗೆ
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ಉಪ-ವಿಭಾಗ
ಬೆಂಗಳೂರು.

2004/19/2003
CAR No. 526/02-03
6/3/03

C/I
RK/CR107/06-07
31-8-06

"ನಕಲು ನೀಡಿದೆ"

R. Bhatya
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಛೇರಿಗೆ
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ಉಪ-ವಿಭಾಗ
ಬೆಂಗಳೂರು.

"ನಕಲು ನೀಡಿದೆ"

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಛೇರಿಗೆ
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ಉಪ-ವಿಭಾಗ
ಬೆಂಗಳೂರು.

"ನಕಲು ನೀಡಿದೆ"

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಛೇರಿಗೆ
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ಉಪ-ವಿಭಾಗ
ಬೆಂಗಳೂರು.

ANNEXURE

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ಆಧಾರ್ ಕಾರ್ಡ್ ನಂ. 1033

ಆಧಾರ್ ಕಾರ್ಡ್ ನಂ. 1033

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ನೀ ಹಾಳೆಯ ಪಟು ಅಪ್ಪ- ಸಂಖ್ಯೆ ೨೦೭೪-೨೫

CERTIFICATE

Certified that a sum of Rs. 500 (In words Rupees Five Hundred only)

in cash has been remitted by Smt/Sri.

R/O. *COBA* Towards Stamp Duty

ದಿನಾಂಕ: 10/01/2015

10/12
ಬಿಜನೋಂದಣಾಧಿಕಾರಿ
ಬೊಮ್ಮನಹಳ್ಳಿ, ಬೆಂಗಳೂರು

ಶ್ರೀ ಬಾಲಕೃಷ್ಣ
ಶಿಬ್ "ಯಥಾ ನಮಃ"

ನಕಲು ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು
ನಕಲು ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ ದಿನಾಂಕ
ನಕಲು ತಯಾರಾದ ದಿನಾಂಕ
ನಕಲು ಕೊಟ್ಟ ದಿನಾಂಕ
ನಕಲು ತಯಾರಿಸಿದವರು
ನಕಲು ಪಾಳೆ ಮಾಡಿದವರು



ಹಿರಿಯ ಉಪನೋಂದಣಾಧಿಕಾರಿ
ಬೊಮ್ಮನಹಳ್ಳಿ, ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ

1033/58-59

ಸನ್ ವಂದು ಸಾವಿರದ ವಂಭೈನೂರ ಐವತ್ತೆಂಟನೇ ಇಸವಿ ಜೂನ್ ತಾರೀಖು ಆರರಲ್ಲಿ ಬೆಂಗಳೂರು ಸೌತ್ ತಾಲ್ಲೋಕ್. ಕೆಂಗೇರಿ ಹೋಬಳಿ, ವಳಗೆರೆ ಹಳ್ಳಿ ಗ್ರಾಮದಲ್ಲಿರುವ ಫವತಿ ಗಾರೆ ಸಂಜೀವಪ್ಪನ ಕುಟುಂಬ ಶ್ರೀಮತಿ. ನರಸಮ್ಮ ಉರುಫ್ ಮೂಗಮ್ಮನವರಿಗೆ ಬೆಂಗಳೂರು ಸೌತ್ ತಾಲ್ಲೋಕ್, ಉತ್ತರಹಳ್ಳಿ ಹೋಬಳಿ, ಗೊಟ್ಟಿಗೆರೆ ಗ್ರಾಮದಲ್ಲಿ ವಾಸವಾಗಿರುವ ತಿರುಮಾಳೇ ಗೌಡರ ಮಗ ವೆಂಕಟನರಸಪ್ಪ ಆದ ನಾನು ಬರೆದುಕೊಟ್ಟ ಕ್ರಯಪತ್ರದ ಕ್ರಮ ಏನೆಂದರೆ ಈ ದಿವಸ ನನ್ನ ಜರೂರು ನಿಮಿತ್ಯವೂ ಮತ್ತು ನಾವು ವಾಸ ಮಾಡುವ ಗ್ರಾಮದಲ್ಲಿ ಗದ್ದೆ ತೆಗೆದುಕೊಳ್ಳತಕ್ಕ ಉದ್ದೇಶ್ಯದಿಂದಲೂ ಮತ್ತು ಗೃಹಕೃತ್ಯದ ಖರ್ಚಿಗೂ ಸಹ ನನ್ನ ಸ್ವಯಾರ್ಜಿತವಾಗಿ ನನ್ನ ಹೆಸರಿಗೆ ಚಿಕ್ಕ ನರಶಿಂಹಯ್ಯ ವಗೈರೆರಿಂದ ಕ್ರಯವಾಗಿ ಲಾಗಾಯ್ತಿನಿಂದ ನನ್ನ ಸ್ವಾಧೀನಾನು ಭವದಲ್ಲರುವ ಈ ಕೆಳಗಿನ ಷೆಡ್ಯೂಲ್‌ನಲ್ಲಿ ಕಾಣಿಸಿರುವ ಸ್ವತ್ತನ್ನು ಗೌರ್ಮೆಂಟ್ 1500-00 ಒಂದು ಸಾವಿರದ ಐದು ನೂರು ರೂಪಾಯಿಗಳಿಗೆ ಶುದ್ಧ ಕ್ರಯಕ್ಕೆ ಕೊಟ್ಟಿರುತ್ತೇನೆ. ಈ ಬಾಬು ಮೊಬಲಗು ಪೈಕಿ 200-00 ಎರಡು ನೂರು ರೂಪಾಯಿಗಳನ್ನು ಅಡ್ವಾನ್ಸ್ ಆಗಿ ಪಡೆದುಕೊಂಡಿರುತ್ತೇನೆ. ಬಾಕಿ 1300-00 ವಂದು ಸಾವಿರದ ಮೂರು ನೂರು ರೂಪಾಯಿಗಳನ್ನು ಈ ಪತ್ರ ರಿಜಿಸ್ಟರ್ ಆಗುವ ವೇಳೆಗೆ ಸಬ್ ರಿಜಿಸ್ಟ್ರಾರ್‌ರವರ ರೂಬು ರೂಬು ಪಡೆದುಕೊಂಡು ಈ ಪತ್ರ ರಿಜಿಸ್ಟರ್ ಮಾಡಿಸಿಕೊಡುತ್ತೇನೆ. ಸ್ವತ್ತನ್ನು ಈ ದಿವಸವೇ ನಿಮ್ಮ ಸ್ವಾಧೀನಕ್ಕೆ ಕೊಟ್ಟಿರುತ್ತೇನೆ. ಈ ಲಾಗಾಯ್ತು ಇದಕ್ಕೆ ಕಟ್ಟರತಕ್ಕ ಕಂದಾಯ ವಗೈರೆ ಸರ್ಕಾರಕ್ಕೆ ನೀವೇ ಕಟ್ಟಿಕೊಂಡು ನಿಮ್ಮ ಪುತ್ರ ಪೌತ್ರ ಪಾರಂಪರ್ಯವಾಗಿ ಅನುಭವಿಸಿಕೊಂಡು ಬರತಕ್ಕದ್ದು. ಈ ಲಾಗಾಯ್ತು ಇದಕ್ಕೆ ನೀವೇ ಸಂಪೂರ್ಣ ಮಾಲೀಕರಾಗಿ ವ್ಯವಹಾರ ಚತುಷ್ಪಯಿಂದ ಮೂಲ್ಕ ವ್ಯವಹರಿಸಿಕೊಂಡು ಬರತಕ್ಕದ್ದು. ಇದರಲ್ಲಿರತಕ್ಕ ಜಲ, ತರು, ಪಾಷಾಣಾಧಿ, ಅಷ್ಟ ಭೋಗಗಳು ಏನಿದ್ದಾಗ್ಯೂ ನಿಮ್ಮದಾಗಿರುತ್ತೆ. ಈ ಸ್ವತ್ತು ನನ್ನ ಸ್ವಯಾರ್ಜಿತವಾಗಿ ನನ್ನ ಸಂಪೂರ್ಣ ಹಕ್ಕುದಾರರಿಗೆ ವಳಪಟ್ಟಿರುತ್ತೆ. ಇದನ್ನು ನಾನು ಯಾರಿಗೂ ಯಾವ

ವಿಧದಲ್ಲಿ ಪರಭಾರೆ ಮಾಡಿಲ್ಲ. ಇದರ ಮೇಲೆ ಜೀನಾಂಶದ ಡಿಕ್ರಿ ಮೈನರ್ ತಕರಾರು ಯಾ ಕೋರ್ಟ್ ಅಟ್ಯಾಚ್‌ಮೆಂಟ್ ವಗೈರೆ ಏನೂ ಇಲ್ಲಾ ಎಂತ ನಿಮಗೆ ಪೂರ್ತಾ ನಂಬಿಕೆ ಹೇಳಿ ಈ ಕ್ರಯ ಮಾಡಿರುತ್ತೇನೆ. ಅಲ್ಲದೇ ಇದರ ಮೇಲೆ ಯಾವ ವಿಧವಾದ ತಂಟೆ ತಕರಾರುಗಳು ಬಂದಾಗ್ಯೂ ಸಹಾ ನಾನೇ ಖುದ್ದಾಗಿ ನಿಂತು ನನ್ನ ಸ್ವಂತ ಖರ್ಚಿನಿಂದ ಪರಿಹರಿಸಿಕೊಡುತ್ತೇನೆ. ವಂದು ವೇಳೆ ನಾನು ಹಾಗೆ ಮಾಡದೇ ಈ ವಿಷಯವಾಗಿ ನಿಮಗೆ ತೊಂದರೆ ಬಂದಲ್ಲಿ ನಾವು ವ್ಯವಹರಿ ನಮ್ಮ ನಷ್ಟ ವೆಚ್ಚಗಳನ್ನು ನನ್ನ ಖುದ್ದು ಜವಾಬ್ದಾರಿಯಿಂದ ನನ್ನ ಆಸ್ತಿಗಳಿಂದಲೂ ವಸೂಲ್ ಮಾಡಿಕೊಳ್ಳಬಹುದು ದಾಖಲೆ ಬಗ್ಗೆ ಹಿಂದಿನ ಕ್ರಯದ ಕಾಗದ ಕಂದಾಯ ರಶೀದಿಗಳು ಪಟ್ಟಿ ವಗೈರೆ ನಿಮ್ಮ ವಶ ಬಿಟ್ಟಿರುತ್ತೇನೆ. ಸ್ವತ್ತಿನ ತಪ್ಪೀಲ್ ಚಕ್ಕುಬಂದಿ ವಗೈರೆ ಬೆಂಗಳೂರು ಸೌತ್ ತಾಲ್ಲೂಕು, ಕೆಂಗೇರಿ ಹೋಬಳಿ, ವಳಗೆರೆ ಹಳ್ಳಿ ಗ್ರಾಮಕ್ಕೆ ಶೇರಿದ ಸರ್ವೆ ನಂಬರು 25 ಯಿಪ್ಪತ್ತೈದು ಖುಷ್ತಿ 1-35 ವಂದು ಎಕರೆ ಮೂವತ್ತೈದು ಗುಂಟೆಗೆ ಆಕಾರ 3-00 ರೂಪಾಯಿ ಉಳ್ಳದ್ದು ಮತ್ತು ಇದೇ ಗ್ರಾಮದ ಸರ್ವೆ 24/3 ಯಿಪ್ಪತ್ತ ನಾಲ್ಕು ಸಬ್ ನಂಬರು ಪೂರಾ ಖುಷ್ತಿ 2-26 ಎರಡು ಎಕರೆ ಯಿಪ್ಪತ್ತಾರು ಗುಂಟೆಗೆ ಆಕಾರ 3-44 ಮೂರು ರೂಪಾಯಿ ನಲವತ್ತ ನಾಲ್ಕು ಪೈಸಾ ವುಳ್ಳದ್ದು ಎರಡೂ ಶೇರಿ ವಂದಕೊಂದು ಲಗತ್ತಾಗಿರುವುದರಿಂದ ಈ ಎರಡು ನಂಬರುಗಳ ಒಟ್ಟು ಚಕ್ಕುಬಂದಿ :

ಪೂರ್ವಕ್ಕೆ	ಮುನಿಲಕ್ಷ್ಮಮ್ಮ ನ ಬಾಬು ಜಮೀನು
ಪಶ್ಚಿಮಕ್ಕೆ	ಕೆ.ಟಿ. ಬಸವರಾಜಪ್ಪನ ಜಮೀನು
ಉತ್ತರಕ್ಕೆ	ನಾಗರಾಜ ಮತ್ತು ಕುಂಟ ನಂಜಪ್ಪ ಇವರ ಜಮೀನು
ದಕ್ಷಿಣಕ್ಕೆ	ಮುನಿಲಕ್ಷ್ಮಮ್ಮ ಹುಚ್ಚಪ್ಪ ಮತ್ತು ಬಾಗಲೂರ್ ಮುನಿಶ್ಯಾಮಪ್ಪ ಇವರ ಜಮೀನು

ಈ ಮಧ್ಯೆ ಇರತಕ್ಕದ್ದು ಈ ಮೇಲೆ ಕಂಡಂತೆ ನಿಮಗೆ ಕ್ರಯಕ್ಕೆ
ಕೊಟ್ಟಿರುತ್ತೇನೆ ಎಂದು ನನ್ನ ಖುದ್ದ ಮನೋರಾಜಿಯಿಂದ ಒಪ್ಪಿ ಬರೆದುಕೊಟ್ಟ
ಕ್ರಯಪತ್ರ

ಸಹಿ. ವೆಂಕಟನರಸಪ್ಪ

ಸಾಕ್ಷಿಗಳು

1. ಸಹಿ ತಿರುಮಳೆ ಗೌಡರು
2. ಸಹಿ ಪಟೇಲ್ ಕೆ. ಸುಬ್ಬಯ್ಯ

ಜಕ್ಕಲಂ ಆರ್. ನರಹರಿಯಪ್ಪ ಶ್ಯಾನುಭೋಗ್ ಕೆಂಗೇರಿ

This document is registered as No. 1033/58-59 of Book I
Volume 61, pages 103 to 105

Sd/-
Sub Registrar

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83-84 ಸೂರಾ	ನಿಗದಿತ ಎಲ್ಲ ಮಾರ್ಗ				9 2-28	7 2-28	8 2-28	9 2-28	10 2-28	11 -	12 2-28	13	14	15
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"ಬೆರಾಹ್ ನಕಲು"
 ಆ-ಬಾಬ್
 ತಹಶೀಲ್ದಾರ್ ಪ್ರೀತ್-2
 ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲೂಕು
 ಬೆಂಗಳೂರು

19/11/17
 19/11/17

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದ
1976ನೇ ಕಾಯ್ದೆ ಸೆಕ್ಷನ್ 17(5)ರ
ಮೇರೆ



ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ, ಬೆಂಗಳೂರು

ನೋಟೀಸು

ಛಾ. ಸ್ವಾ. ಪ್ರ. : ಸಂಖ್ಯೆ.....

ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದ ಆಯಾಕ್ತರವರ ಕಛೇರಿಯಿಂದ—

ಬೆಂಗಳೂರು..... ದತ್ತಿ..... ತಾಲ್ಲೂಕು..... ಗ್ರಾಮೀಣ..... ಹೋಬಳಿ.....
ಬೆಂಗಳೂರು..... ಗ್ರಾಮದಲ್ಲಿರುವ..... ರಸ್ತೆಯಲ್ಲಿ..... ಮುಗುವ.....
ರಗಿ ತಿಳಿಯಪಡಿಸುವುದೇನೆಂದರೆ :-

ಇದರಡಿ ವಿವರಿಸಿದ ಸ್ವತ್ತು..... ಬೆಂಗಳೂರು ನಗರ ಮಹಾನಗರ ಪಾಲಿಕೆ

ಶೋಷಣೆ ಬೇಕಾಗಿರುವುದರಿಂದ, ಸದರಿ ಸ್ವತ್ತನ್ನು ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳುವ (ಅಕ್ವೈರ್ ಮಾಡಿ
ಕೊಳ್ಳಲು) ನಿಶ್ಚಯಿಸಿ 1988ನೇ ಇಸವಿ..... ನಂ. 28
ಮೇರೆಗೆ 19-1-1989ನೇ ದಿನಾಂಕದ ಕರ್ನಾಟಕ ಗಜೆಟ್ 125 to 145ನೇ ಪುಟದಲ್ಲಿ
.....ರಲ್ಲಿ ನೋಟೀಫಿಕೇಷನ್ ಪ್ರಕಟವಾಗಿದೆ.

ಈ ವಿಚಾರದಲ್ಲಿ ನಿಮ್ಮ ತರಬಾರು ವಿನಾದರೂ ಇದ್ದಲ್ಲಿ ಈ ನೋಟೀಸು ನಿಮ್ಮ ಮೇಲೆ ಜಾರಿಯಾದ 30 ದಿನಗಳೊಳಗಾಗಿ, ಸದರಿ
ತರಬಾರಿಗೆ ಕಾರಣ ನಮೂದಿಸಿ ಜವಾಬನ್ನು ಹಾಜರುಪಡಿಸತಕ್ಕದ್ದು.

ಸ್ವತ್ತಿನ ವಿವರಗಳು

ಗ್ರಾಮದ ಹೆಸರು ಮತ್ತು ಸ್ವತ್ತಿನ ವಿವರಗಳು ಮತ್ತು ಸರ್ವೆ ನಂಬರು	ಮಾಲೀಕರ ಹೆಸರು	ಜಮೀನಿನ ವಿಸ್ತೀರ್ಣ ಮತ್ತು ಆಕಾರ		ಹೆಚ್ಚಿನ ವಸತಿ ಅಥವಾ ಹುಲ್ಲಿನ ವಸತಿ ಅಂಕಣ ಹಾಗೂ ವಿಸ್ತೀರ್ಣ	ಚಕ್ರಬಂದಿ (ಚೌತರ್ವು)				ಟಿಪ್ಪಣಿ
		ಎ-ಗುಂ	ರೂ. ಪ್ರ.		ಪೂರ್ವಕ್ಕೆ	ಪಶ್ಚಿಮಕ್ಕೆ	ಉತ್ತರಕ್ಕೆ	ದಕ್ಷಿಣಕ್ಕೆ	
ಬೆಂಗಳೂರು ನಗರ ಮಹಾನಗರ ಪಾಲಿಕೆ	ಬೆಂಗಳೂರು ನಗರ ಮಹಾನಗರ ಪಾಲಿಕೆ	2-37	3-41	—	23	26	33	24/1, 25, 24/12	

ಬೆಂಗಳೂರು

ದಿನಾಂಕ 8/2/89

ಆಯಾಕ್ತರ ಪರವಾಗಿ,

ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ,
ಬೆಂಗಳೂರು-560 020.

TYPED COPY
OF

Annexure E

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದ
1976 ನೇ ಕಾಯ್ದೆ ಸೆಕ್ಷನ್ 17(5) ರ ಮೇರೆ

ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ. ಬೆಂಗಳೂರು
ನೋಟೀಸು

ಭೂ. ಸ್ವಾ. ಪ್ರ. ಸಂಖ್ಯೆ

ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದ ಆಯುಕ್ತರವರ ಕಛೇರಿಯಿಂದ

ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲ್ಲೂಕು, ಕೆಂಗೇರಿ ಹೋಬಳಿ, ವಳಗೆರೆಹಳ್ಳಿ
ಗ್ರಾಮದಲ್ಲಿರುವ ನರಸಮ್ಮ @ ಮೂಗಮ್ಮ ರಿಗೆ ತಿಳಿಯಪಡಿಸುವುದೇನೆಂದರೆ:-

ಇದರಡಿ ವಿವರಿಸತಕ್ಕ ಸ್ವತ್ತು ಜ್ಞಾನಭಾರತಿ ಬಡಾವಣೆ ಕ್ಷೋಸ್ಕರ
ಬೇಕಾಗಿರುವುದರಿಂದ ಸದರಿ ಸ್ವತ್ತನ್ನು ಬೆಂಗಳೂರು ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರಕ್ಕೆ
ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಲು (ಅಕ್ವೈರ್ ಮಾಡಿಕೊಳ್ಳಲು) ನಿಶ್ಚಯಿಸಿ 1988 ನೇ
ಇಸವಿ ನವೆಂಬರ್ ಮಾಹೆ 28 ಮೇರೆಗೆ 19-1-1989 ನೇ ದಿನಾಂಕದ
ಕರ್ನಾಟಕ ಗೆಜೆಟ್ 125 -145 ನೇ ಪುಟದಲ್ಲಿ --- ರಲ್ಲಿ ನೋಟೀಫಿಕೇಷನ್
ಮಾಡಲ್ಪಟ್ಟಿರುತ್ತದೆ.

ಈ ವಿಚಾರದಲ್ಲಿ ನಿಮ್ಮ ತಕರಾರು ಏನಾದರೂ ಇದ್ದಲ್ಲಿ ಈ ನೋಟೀಸು ನಿಮ್ಮ
ಮೇಲೆ ಜಾರಿಯಾದ 30 ದಿನಗಳೊಳಗಾಗಿ ಸದರಿ ತಕರಾರಿಗೆ ಕಾರಣ
ನಮೂದಿಸಿ ಜವಾಬನ್ನು ಹಾಜರುಪಡಿಸತಕ್ಕದ್ದು.

ಸ್ವತ್ತಿನ ತಪಶೀಲು

ಗ್ರಾಮದ ಹೆಸರು ಮತ್ತು ಸ್ಥಳದ ತಪಶೀಲು ಮತ್ತು ಸರ್ವೆ ನಂಬರು	ಮಾಲೀಕರ ಹೆಸರು	ಜಮೀನಿನ ವಿಸ್ತೀರ್ಣ		ಹೆಂಜಿನ ಮನೆ ಅಥವಾ ಹುಲ್ಲಿನ ಮನೆ ಅಂಕಣ ಹಾಗೂ ವಿಸ್ತೀರ್ಣ	ಚಕ್ರಬಂದಿ (ಚೌತಮೇ)				ಷರಾ
		ಎ- ಗು	ರೂ. ಪೈ		ಪೂರ್ವಕ್ಕೆ	ಪಶ್ಚಿಮಕ್ಕೆ	ಉತ್ತರಕ್ಕೆ	ದಕ್ಷಿಣಕ್ಕೆ	
ವಳಗೆರೆಹಳ್ಳಿ ಸ. ನಂ. 24/3	ನರಸಮ್ಮ @ ಮೂಗಮ್ಮ	2-37	3-41	-	23	26	33	24/1, 25, 24/12	

ಬೆಂಗಳೂರು
ದಿನಾಂಕ 8/12/89

ಸಹಿ
ಆಯುಕ್ತರ ಪರವಾಗಿ

ANNEXURE - 'F'

BEFORE THE LAND ACQUISITION OFFICER BANGALORE DEVELOPMENT AUTHORITY, BANGALORE

APPLICATION UNDER SECTION 18 OF THE BDA ACT AND
LAC ACT FOR RELEASE OF COMPENSATION AND OTHER CLAIMS.

APPLICANTS:

- 01) (a) Smt. Lakshamma,
Aged about 55 years,
W/o. Late Hanumappa,
R/at: Kengeri Village,
Bangalore South Taluk,
Bangalore-560060.

(b) Sri. Nagaraju, @
Munivenkatappa,
Aged about 35 years,
S/o. Late Hanumappa,

(c) Sri. Sanjivappa @
Sanjivaraya,
S/o. late Hanumappa,
aged about 33 years,
- 02) Sri. K.C.Anjinappa,
S/o. Late Chinnappa,
Aged about 48 years,
- 03) (a) Sri. Ganesha,
S/o. Late Puttappa,
Aged about 37 years,

(b) Sri. P.Murthy,
S/o. Late Puttappa,
Aged about 35 years,

(c) Shankaranayana,
S/o. Late Puttappa,
Aged about 28 years,
- 04) (a) Sri. Ramakrishna,
S/o. Late Gare Sanjivappa,
Aged about 70 years,

(b) Sri. Srinivasa,
S/o. Ramakrishna,
Aged about 19 years,
- 05) Sri.Vishwanatha,
S/o. Late Radhakrishna,
Aged about 23 years,
- 06) Smt. Revamma,
W/o. Late Nagaraj,
Aged about 43 years,

.. Applicants.

(All the applicants are residing at the
same address mentioned at Applicant No.1).

-: 2 :-

The Applicants begs to submit as follows:-

1. The Applicants submit that the address of the applicants for the purpose of service of Notices, summons etc., from this Hⁿ'ble C^m Authority may be served as mentioned in the cause title above. They may also be served through their counsels Sri. D. Gangadhara and Sri. D.G.Shanthappa, Advocates, No.68, 12th Cross, Mahalakshmi Layout, Bangalore-560086.
2. The applicants submit that the applicants are belonging to one family, who are succeeded the property of Late Gare Sanjivappa, and his wife Smt. Narasamma, alias Moogamma. The said Gare Sanjivappa, was the Grand father of the applicants and father of the applicant No.4(a). The other applicants are sons and grand sons and daughter-in-law, of the late Gare Sanjivappa.
3. It is submitted that Gare Sanjivappa and his wife Smt. Narasamma alias Moogamma were having property. It was registered in the name of Narasamma @ Moogamma. The said land Sy.No.25, measuring 1 acre 35 guntas, which belonging to Gare Sanjivappa and his wife. Narasamma. The said Gare Sanjivappa and Narasamma were grand father and grand mother of the applicants.
4. It is submitted that the Gare Sanjivappa and his wife Narasamma @ Moogamma, died leaving behind the

applicants as their successors. The grand mother of the applicants Narasamma @ Moogamma, died on 12.9.1995 and after her death sy. No.25 measuring 1 acre 35 guntas is succeeded by the applicants. The said Narasamma was having sons namely, Chinnappa, Puttappa, Ramakrishna, Radhakrishna, and Nagara. All sons of Narasamma, except applicant 4(a) died. The remaining sons are having their sons as thier LRs, and they are filing this application as claims as well as ~~will~~ ~~x~~ successors rights of their respective father. The said Narasamma @ Moogamma was the right holder of the property and pahani as well as recoords of rights carried out in the name of the grand mother of the applicants. A copy of the record of rights and pahani certificate clearly established the rights of the applicants which lands Sy.No.25 is belonging to the late Narasamma alias Moogamma, though Khatha No.47 and possession No.839, and after her death the above lands are being succeeded by the applicants. The copy of the records of rights for the period 1979-80, 1980-81, 1981-82, 1982-83, 1983-84, 1984-85, 1985-86, 1986-87, 1987-88, 1988-89, 1989-90 and 1990-91 are produced for kind perusal of the authority. The copy of the death certificate of the late Narasamma is produced for kind reference. Such being the facts and relationship between the applicants and their calies the lands Sy.No.25 was acquired by the Bangalore Development Authority for formation of the Gnana Bharathi Layout.

The above land were notification dated 28.11.1988, and later the same was published in the Karnataka Gazette dated 19.1.1989, in 125 to 145, and the said acquisition proceedings being initiated and notification has been made and award has been passed about the acquisition of the land by the B.D.A.

5. It is submitted that B.D.A. being made ^{the} ~~and~~ award about the acquisition of the land is not taken by late Narasamma @ Moogamma, who is none other than the grand mother of the applicants, or not released any compensation or award from the B.D.A.

6. It is submitted that either the compensation amount or the site was not allotted by the B.D.A. The applicants are schedule case persons and they are houseless persons and they are not having any house or house sites in their name. Though the BDA acquired their property, that Sy.No.25, measuring 1 acres and 35 guntas. The applicants claim being legally valid for claiming the house sites apart from the compensation amount that they are entitled from the B.D.A. Hence, the award of compensation has to be released in the names of the applicants who are the LR's of the deceased Narasamma, and except these applicants no other person has any right over the claim.

7. It is submitted that earlier, the application to claim the compensation was moved by the applicants

but it was not granted by the Authority. Hence, it is just and necessary to release the compensation amount as well as the sites under the incentive scheme in the names of the applicants.

8. It is submitted that the land being taken by the B.D.A. at this stage not made any allotment to any person. Hence, we are having all the rights and claim over the land.

WHEREFORE, it is prayed that this Hon'ble Authority be pleased to consider the applicant's case to enjoy the right of the land or release the compensation, and allow the application in respect of the land Sy.No.25 of Valagerehalli, Kengeri Hobli, Bangalore, in the ends of justice and equity.

Bangalore.

Advocate for Applicants.

Dated: 27-03-2002.

/// true copy ///

SET

ANNEXURE - '6'

AMENDED PLAINT

IN THE COURT OF THE CITY CIVIL JUDGE AT BENGALURU

O.S No. 9633/2004

BETWEEN :

1. Sri. Hanumappa
Since dead by his LRs.
 - (a). Smt. Lakshmamma
W/o. late Hanumappa
Aged about 60 years
 - (b). Sri. Nagaraju @ Munivenkatappa
S/o. late Hanumappa
Aged about 42 years
 - (c). Sri. Sanjeevappa @ sanjeevaiah
S/o. late Hanumappa
Aged about 34 years
2. Sri. Chinnappa
Since dead by his LRs
 - (a). Sri. K.C. Anjinappa
S/o. late Chinnappa
Aged about 50 years,
3. Sri. Puttappa
Since dead by his LRs
 - (a). Sri. P. Ganesha
S/o. late Puttappa
Aged about 38 years
 - (b). Sri. P. Murthy
S/o. late Puttappa
Aged about 34 years
 - (c). Sri. Shankaranarayana
S/o. late Puttappa
Aged about 30 years
4. Sri. Ramkrishna
Since dead by his LRs
 - (a). Sri. Srinivasa
S/o. late Ramkrishna,
aged about 22 years.



All above are
R/at Valagerehalli Village,
Kengeri Satellite Town,
Bangalore South Taluk,
Bangalore – 560 60

... Plaintiffs

AND :

01). Sri. Radhakrishna
Since dead by his LRs & Ors.

a) Sri. Vishwanatha
S/o. late Radhakrishna
Aged about 24 years

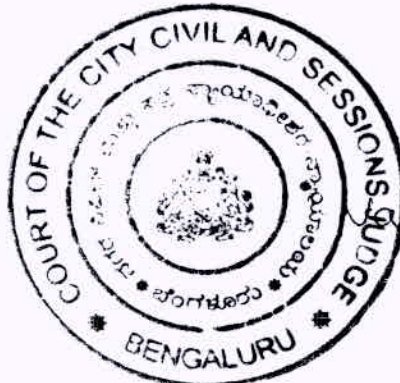
02). Sri. Nagaraja
Since dead by his LRs:

a) Smt. Revamma
W/o. late Nagaraja
Aged about 45 years

b) Sri. Srinivasa
S/o. late Nagaraja
Aged about 22 years
Defendants 1(a), 2(a) & (b) are
Residing at : Valagerhalli Village,
Kengeri Satellite Town,
Bangalore south Taluk,
Bangalore - 560 060

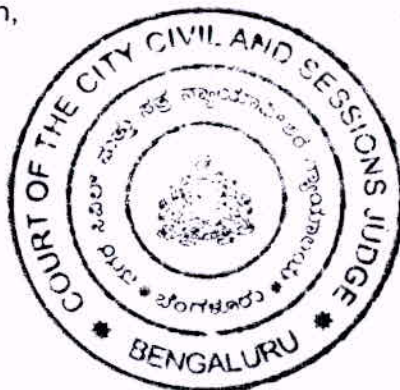
03). Sri. G.V. Srikanth
S/o. venkatappa
Aged about 47 years,
R/at No. 20/2, 2nd Cross,
Attiguppe, Vijayanagar,
Bangalore – 560 040

04). Sri. Suvalal
S/o. Roshan Lal,
Aged Major,
R/at Prop : M/s. Roshana Lal Suvala Jain,
Pawn Broker, No. 74,



Vidyapeeta Road, Kengri,
Bangalore – 560 060

- 05). Sri. Marappa
S/o. Nadubeedi Muniyappa
Aged about 40 years,
R/at Kengeri Satellite Town,
Bangalore – 560 060
- 06). Sri. Krsihnapp
S/o. (Father name not known)
Working as carpenter,
Aged about 40 years,
R/at Kengeri Satellite Town,
Bangalore – 560 060
- 07). Sri. Muddaiah
S/o. (Father name not known)
Aged Major
R/at No. 25, MTS Layout,
Kengeri Satellite Town,
Bangalore – 560 060
- 08). Sri. Nagendran
S/o. (Father name not known),
R/at No. 7, MTS Layout,
Kengeri Satellite Town,
Bangalore – 560 060
- 09). Sri. Gangaiah
S/o. (Father name not known)
Aged Major,
R/at No. 116, MTS Layout,
Kengeri Satellite Town,
Bangalore – 560 060
- 10). Smt. Sujatha
W/o. (Husband name not known),
aged major,
R/at No. 19, MTS Layout,
Kengeri Satellite Town,
Bangalore – 560 060



Nagani

- 11). Sri. Sundar
S/o.(Father name not known)
Aged Major,
R/at No. 52, MTS Layout,
Kengeri Satellite Town,
Bangalore – 560 060
- 12). Sri. Chandrashekar
S/o.(Father name not known)
Aged Major,
Prop : Mohan Bar & Restaurant,
MTS Layout,
Kengeri Satellite Town,
Bangalore – 560 060
- 13). Sri. D. Govindappa @ Govindaiah
S/o. Hanumathappa
Aged about 54 year,
Occupn : agriculturist,
R/at Anagodu Village,
Davanagere taluk
- 14). Sri. Muralidhar D.H
S/o. Hanumanthappa
Aged about 37 years, R/at
No. 111/2, 2nd Cross,
Mahalakshmi Layout,
Bangalore – 560 086
- 15). Sri. D. Jayappa
S/o. Hanumanthappa,
Aged about 51 years,
R/at Nittuvalli New Extention,
Davanagere – 4
- 16). Smt. Shivarudramma
W/o. Laksmikantha Chitta,
Aged about 36 years,
R/at Nittuvalli New Extention,
Davanagere – 4



Nagani

17). Smt. Savithramma
W/o. Govindaraj Mugadam
Aged about 35 years,
R/at PWB Quarters,
Gadag Taluk & Dist.

18). Sri. M. Umesh
S/o. late Mahanthappa
Aged about 35 years,
R/at Nittuvalli New Extention,
Davanagere - 4.

19). The Government of Karnataka
Reptd. By its Secretary,
Depat. of Revenue,
M.S. Building,
Bangalore - 650 001

20). The Commissioner
Bangalore Development Authority,
Chowdaiah Road,
Bangalore - 560 020

21). The Secretary
CMC, Kengeri
Bangalore - 560 060

22). Sri. Shankarappa
Since deceased
Rep. by his LRs.

a) Smt. Kamalamm
W/o. late Shankarappa
Aged Major

b) Kum. Asharani
D/o. late Shankarappa
Aged Major

c) Sri. Kiran Kumar
S/o. late Shankarappa

All are residing at
Valagerahalli Village,



Nagani

Yeshwathpura Hobli,
Bangalore South Taluk
Bangalore – 560 060

23). Sri. H. Anjinappa
S/o. late Hanumagangappa @
Chikkathayappa,
Major,

24). Sri. H. Ramesh
S/o. late Hanumagngappa @
Chikkathayappa,

Both are residing at
Valgerehalli Village,
Kengeri Hobli,
Bangalore South Taluk

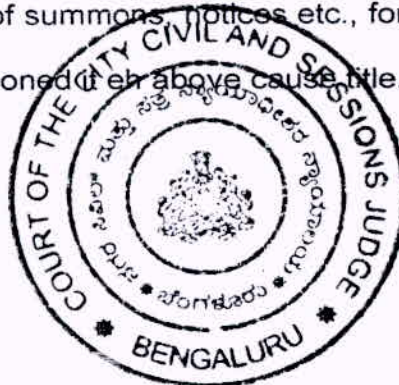
... Defendants

**PLAINT UNDER ORDER VII RULE 1 OF THE CODE OF CIVIL
PROCEDURE**

The plaintiffs begs to submit as here under :-

1. The plaintiffs submits tha the address of the plaintiffs for the purpose of service of summons, notices etc., from this Hon'ble Court it may be served as mentioned in the above cause title. Also, the plaintiffs may be served through their counsels (1) Sri. D. Gangadhara, (2) Sri. D.G. Shanthappa, & (3) Sri. R. Manjunath, Advocates, No.68, 12th cross, Opp : Srinivasa Temple, Mahalakshmi Layout, Bangalore - 86.

2. The plaintiffs submits that the address of the Defendants for the purpose of service of summons, notices etc., form this Hon'ble Court it may be served as mentioned in the above cause title.



Nagari

3. The plaintiffs submit that the plaintiffs are owners of land Sy. No. 25 measuring 1 Acre 35 Guntas and Sy. No. 24/3 measuring 2 Acres 28 Guntas, situated at Valagerhalli village, Kengeri Hobli, Bangalore South Taluk, more fully described in the suit schedule, and the plaintiffs are enjoying the suit Schedule properties as owners.

4. The plaintiffs submits that the plaintiff's grand father late Gare Sanjeevappa was purchased the property i.e. land Sy. No. 25, measuring 1Acre 35 Guntas and land Sy. No. 24/3, measuring 2 Acres 28 Guntas. The same registered in the name of his wife Smt. Narasamma @ Moogamma, through registered sale deed dated 06.06.1958, registered as Document No. 1033/1958-59, and the same was registered at the office of the Sub Registrar, Bangalore. The Grand Father of the plaintiffs Sri. Gare Sanjeevappa, being invested amount for purchasing the land out of his earnings and income of the joint family, and registered the property in the name of his wife i.e., the grandmother of the plaintiffs Smt. Narasamma @ Moogamma. Since than the Grand father of the plaintiffs Gare Sanjeevappa was enjoying and subsequently after his death the said land has been transferred in the name of Smt. Narasamma @ Moogamma as per the registered sale deed made in her favour.

5. The plaintiffs submits that the above properties were purchased in the name Smt. Narasamma @ Moogamma through the sale deed dated 06.06.1958 in Reg. No. 1033/1958 - 59 and for providing the certified copy of the sale deed issued by the authority which clearly

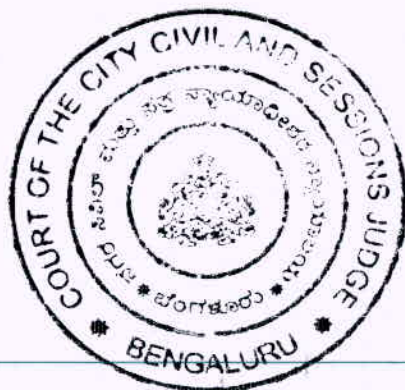


Nagari

discloses the rights of the plaintiffs and the same copy is produced and marked as Document No.1.

6. It is submitted that during the life time of Smt. Narasamma @ Moogamma it is continuously given the rights and revenue entries made in the name of Smt. Narasamma @ Moogamma, throughout her life the revenue records are continued showing the entry in the records that the property belongs to Smt. Narasamma @ Moogamma. For providing the copies of the record of Rights (Pahani) which disclosed that the land Sy. No. 24 measuring 1 Acre 35 Guntas and Sy. No.24/3 measuring 2 Acres 28 Guntas is in the name of Smt. Narasamma @ Moogamma and the same copies of Pahani are produced for the kind reference of this Hon'ble Court as Document Nos. 2 & 3, which are the periods 1980-1982 and subsequent periods also it is continued the name of Smt. Narasamma @ Moogamma which is for the period 1985 and the same copies of pahanies standing are herewith produced herewith and marked accordingly as Document Nos. 4 & 5.

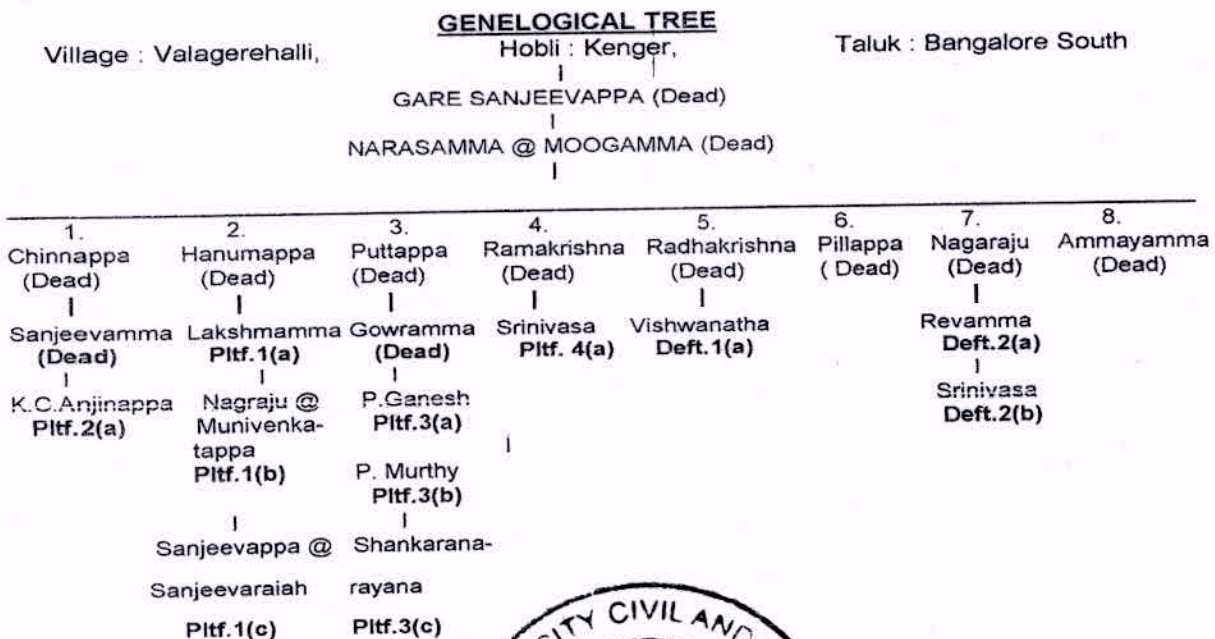
7. The plaintiffs submits that the grandmother of the plaintiffs Smt. Narasamma @ Moogamma was continuously enjoying the property along with the plaintiffs and she lost her breath at the old age i.e., on 12.9.1995 she died leaving behind us i.e. plaintiffs 1 to 4 and Defendants 1 and 2 as the successors of the deceased Smt. Narasamma @ Moogamma. For having the copy of the Death certificate is produced herewith and marked as Document No.6.



Nagani

8. The plaintiffs submits that after the death of Smt. Narasamma @ Moogamma, these properties are succeeded by the plaintiffs 1 to 4 and Defendants 1 and 2 are the successors of the same lands and it is clearly disclosed with the Geneological Tree that the land belongs to the plaintiffs rights about land Sy. No. 24/3 measuring 2 Acres 28 Guntas and Sy.No.25, measuring 1 Acre 35 Guntas are succeeded by the plaintiffs as the successors of Smt. Narasamma @ Moogamma and Gare Sanjeevappa. Sri Gare Sanjeevappa who is the grandfather of the plaintiffs and the father's father of Chinnappa, and it is clearly disclosed in the Geneological Tree that Chinnappa is one of the sons and Hanumappa, Ramakrishnappa and Radhakrishna who are all died and they no more.

9. The plaintiffs submits that the sons of Gare Sanjeevappa i.e., Chinnappa, Hanumappa, Puttappa, Ramakrishna, Radhakrishna, Pillappa, Nagaraja total seven sons and the relationship is shown in the Geneological Tree :-

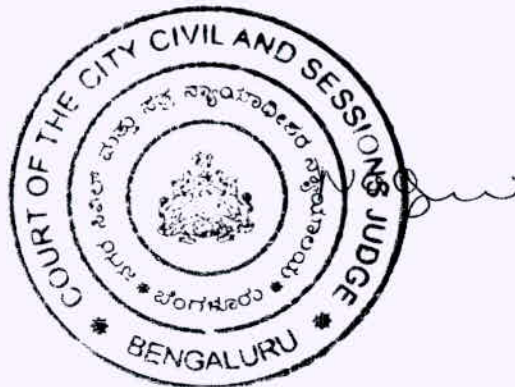


Nagani

10. The plaintiffs submit that the Genealogical Tree which is clearly extracted for showing the relationship between the Plaintiffs and Defendants 1 & 2 who are successors of deceased Gere Sanjeevappa and Smt. Narasamma @ Moogamma. Among them i.e., the plaintiff's father Chinappa, Hanumappa, Puttappa and Defendants 1 & 2 father Ramakrishna and Radhakrishna are also dead leaving behind their sons as successors of their properties. The other son Sri. Pillappa is not having any issues, as he died before his marriage, and also Ammayamma one of the daughters she has also died. Hence, the Plaintiffs 1 to 4 and Defendants 1 & 2 are succeeding these properties which belongs to Gare Sanjeevappa and Smt. Narasamma @ Moogamma. The details in the Genealogical Tree is clearly discloses that the Plaintiffs and Defendants 1 and 2 are the only right holders of these properties.

11. It is submit that the certified copy of Genealogical Tree issued by the office of the village accountant which clearly discloses that the deceased Gere Sanjeevappa and his wife Smt. Narasamma @ Moogamma, were having issues and the same certified is produced herewith and marked as Document No. 7.

12. It is submit that the suit schedule property is a agricultural land and now it is not having agricultural nature, due to the development of adjoining area and presently many unauthorized constructions are raised by the third parties, who are not having any right or title about this



15. The plaintiffs submit that the scheduled property has not been created any sale deed by the father of the plaintiffs or the Defendants 1 & 2 or the grandfather of the plaintiffs have not created any sale deed to any third parties. It is still in the name of the plaintiffs and they enjoying without dividing any share among them. The records are discloses that the plaintiffs 1 to 4 and Defendants 1 & 2 are having equal share and rights on the scheduled properties, as it is all joint family property which left by the grandfather and thereafter the father of the plaintiffs succeeds by enjoying the same. Even after the death of the plaintiffs father, it is still enjoyed by the plaintiffs 1 to 4 and Defendants 1 & 2 and they have not made any partition among them. Knowing these rights and enjoyment of the scheduled property, the Defendant No.3 Mr. G. V. Srikanth, is claiming this land and also the Defendant No.4 Suvalal, was also one of the third party who is troubling the plaintiffs rights and ownership with the collusion of the Defendant No.3, and they are creating third party rights on scheduled property. The Defendant No.3 G. V. Srikantha, has instituted a suit against the plaintiffs in relating to the scheduled property land Sy.No.25, measuring 1 Acre 35 Guntas, stating that the grand mother of the plaintiffs Smt. Narasamma @ Moogamma was allowed their claim and entered into agreement with them. The said false claim made by the Defendant No.3, who has created and fabricated a document about the scheduled property. Ultimately the suit has been



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property. Also, the plaintiffs are also not made any partition among them dividing the schedule properties among them.

13. It is submit that during the year 1988, the B.D.A. authority being issued notice to the plaintiffs regarding acquisition of these lands for the formation of the Layout, and the same notice was issued about acquisition of the land. For proving the same copy of the notice is produced herewith and marked as Document Nos. 8 & 9. The land Sy. No. 24/3 and Sy. No. 25 which total extent 4 Acres 23 Guntas is belonging to the plaintiffs and the same has not made division amongst Plaintiffs. The plaintiffs grand mother or the father of the plaintiffs have not made any division or divided among themselves, as the schedule properties are all a joint family properties which succeeded by the father of the plaintiffs and Defendants 1 & 2. Thereafter the legal representatives of the plaintiffs and Defendants 1 & 2 i.e., sons and daughters are succeeded the properties as right holders.

14. The plaintiffs submit that all the successors deceased Gare Sanjeevappa & Smt. Narasamma @ Moogamma i.e., Radhakrishna died on 17.03.1999, Puttappa died on 18.12.1992, Chinnappa died on 15.12.1990, Nagaraja died on 16.12.80, and Hanumappa died on 29.10.1997 leaving behind their wife & sons, which are Plaintiffs 1 to 4 and Defendants 1 & 2 and they are right holders and successors and claimants on the schedule property. For proving the copies of the death certificate are produced herewith and marked as Document Nos. 10, 11, 13 & 14.



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instituted by the Defendant No. 3 in O.S.No.303/2002 and the said suit is still pending and the plaintiffs have also appeared and contesting the matter by questioning the third Defendants illegal claim. The Defendant No. 3 who is also the Plaintiff in the said suit O.S. No. 303/2002 has unnecessarily created a document about the schedule property, without having any valid transaction. The Defendant No. 3 & 4 have made this master plan to trouble the plaintiffs rights and ownership.

16. It is submit that the other Defendants 5, 6, 7, 8, 9, 10, 11 & 12 have also created records about the schedule property and are trying to put up constructions on these lands and a portion of land the construction is raised by the Defendants 5 to 12. On the same manner the Defendants 13 to 18 who are also making efforts to create rights at schedule premises without having any valid transaction. The Defendants 3 to 18 are troubling the plaintiffs rights and ownership unnecessarily, for that the plaintiffs have already filed application before the Government and as well as B.D.A. authority. The application filed by the plaintiffs addressing to the Government and as well as City Municipal Council, Kengeri, Bangalore, application dt. 16.9.2004 is produced herewith and marked as Document No. 15.

17. The plaintiffs submit that the application is also filed by the plaintiffs for seeking change of Khatha and documents to effect the rights about the lands and to give entry in the revenue records as per the successive rights. The said application filed by the plaintiffs to the Asst.



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Commissioner, Bangalore South Taluk, on 16.9.2004 is produced herewith and marked Document No. 16.

18. The plaintiffs submits that earlier the application was also filed by the plaintiffs relating to the acquisition proceedings for the deletion of the acquisition and also to allowing the rights of the plaintiffs about these lands. Though the land Sy. No.25 measuring 1 Acre 35 Guntas and Sy.No.24/3 measuring 2 Acres 28 Guntas which continuation of the rights on the schedule property and allowing the Khatha in the name of Plaintiffs. The said application is also filed by the plaintiffs before the Land Acquisition Officer, Bangalore Development Authority. The same application filed on 28.3.2002 and for proving the copy of the application along with the acknowledgement for having filed the application before B.D.A. is produced herewith and marked as Document Nos. 17, 18 & 19. Even till this date Defendants 19 to 21 did not allow the rights to the plaintiffs by carrying out the entry as per the application and claim made by plaintiffs. Still the revenue entries are carried in the name of Gare Sanjeevappa i.e. the grandfather of the plaintiffs and Smt. Narasamma @ Moogamma i.e., the grandmother is continued for that the copy of the revenue records is clearly disclosed the name of grandmother's name is continued till this date.

19. It is submitted state that the B.D.A. authority being issued notice foe acquisition of the land Sy.No.24/3 measuring 2 Acres 28 Guntas and Sy. No.25 measuring 1Acre 35 Guntas, the same has not been taken possession or granted possession to the plaintiffs or the



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plaintiffs have not receive any compensation from B.D.A authority still it is continued the rights and title in the name of the plaintiffs, though the revenue entries are not carried out in the name of the plaintiffs.

20. It is submitted that the Defendant authorities i.e., Defendant 19 to 21 being competent authority, they did not give entry in the name of the plaintiffs, as the plaintiffs are succeeded the properties after the death of their grandmother and thereafter the plaintiffs fathers are also not divide among them and still it is undivided enjoyment of the rights on the scheduled property.

21. It is submitted that the other Defendants are unnecessarily creating records without having any valid right or title or without having any order from the competent authority. They are trying to change the Khatha in collusion with the authorities, and they are making hectic efforts by the Defendants 3 to 18 i.e., illegal rights are created by the Defendants about the schedule properties. Though the schedule properties are all joint family property left by the grandfather and grandmother and thereafter her sons i.e., the Plaintiffs and Defendants 1 and 2 fathers are having rights about properties and subsequently, after their death it is not given effect the Khatha and divided share on the schedule property. The B.D.A. authority are also not having any valid claim or they have not the possession of the lands from the plaintiffs or it is not dispossessed the plaintiffs, on basis of the acquisition made. The B.D.A. authority are also not given any relief or award on this matter, in view of the records created by the Defendant 3 to 18 they are likely to obtain the rights on the illegal



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manner with the collusion of the Defendant 19 to 21, who are the competent authorities. The sub - ordinate officers are encouraging the Defendants 3 to 18 for that the plaintiffs are losing their rights, as the records are created by the Defendants. Under these circumstances, the plaintiffs without having any other alternative remedy except to seeking the relief from the order of this Hon'ble court.

22. It is submitted that the continuous efforts is made by the plaintiffs to change the Khatha. On the other hand the Defendants 3 & 4 are being highly influential and they are encouraging other defendants 5 to 18 to fabrication of the records about the schedule properties which they are totally making illegal efforts on these lands. Under these circumstances, the plaintiffs without having any other alternative remedy except to seeking the relief from the order of this Hon'ble court and to make correct division and to enter in the revenue records and to make equal partition among them.

23. It is submit that the Defendants 1 & 2 who are being the right holders, they are also encouraging the other Defendants to create rights without any valid right, they are making hectic efforts to trouble the plaintiffs rights, without making any partition. They are encouraging other defendants, though equal share has to be made amongst Plaintiffs 1 to 4 and Defendants 1 & 2. Even than the Defendants 1 and 2 are sailing with other defendants to create the rights to them, without making any partition on the schedule properties, which the demand made by the plaintiffs.



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But one or other reasons the Defendants 1 & 2 it is dodged by them without making any partition, it is leading part taken by the Defendant 1 & 2, as if they are having exclusive rights on the schedule property. They are also having only a share without making any partition on the schedule property they are likely to allow the right to the third parties and encouraging the other Defendants in the collusion with the Defendants 19 to 21. Hence, the plaintiffs have no other alternative remedy except to seeking the relief and direction from the order of this Hon'ble court.

24. It is submitted that on many occasions the plaintiffs have demanded partitions of the scheduled properties from the Defendants 1 & 2, as the Defendants 1 & 2 are the only persons having rights. During the life time of Sri. Radhakrishna and Nagaraju they have taken a part of this property, and after their death their sons namely Sri. Vishwanath and as well as Smt. Revamma and Sri Srinivasa, the Defendants 2(a) & 2(b) are illegally and improperly dodging the matter without making any partition among them, as the suit scheduled properties are all undivided joint family properties which is enjoyed by the Defendants 1 & 2 with the collusion of the Defendants 3 to 18. Hence, it is very much necessary and essential to grant an order to the plaintiffs and to divide and share the property among them. Otherwise, the Defendants 1 & 2 with the collusion of the other Defendants, they are creating third party rights.



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25. The plaintiffs submit that the demand for partition and share of the plaintiffs was made to the fathers of the first Defendant and father of the 2nd Defendant, and no fruitful results or partition made among them. Again the plaintiffs made an application before the authority and subsequently during October 2004, the plaintiffs demanded the share on the schedule properties, and there is no partition made by the Defendants 1 & 2 to granting the share to the plaintiffs. Again, it is dodged without making any partition, and they are likely to create rights to the other defendants. Under these circumstances, the plaintiffs, without having any other alternative remedy except to seeking the relief and direction from the interference of the Hon'ble court and to grant the relief of partition on the scheduled property.

26. CAUSE OF AUCDTION :

The cause of action aroused for filling of this suit, when the plaintiffs demanded the share on the schedule property, and since the life time of the fathers of the plaintiffs and Defendants 1 & 2 it is made any partition and the fathers of the Defendants 1 & 2 have dodged the matter. Subsequently, it is demanded on many occasions. Thereafter, the application dated 16.9.2004 filed by the plaintiffs to change the entry and to give equal share on the schedule property, and further demanded the plaintiffs on 01.10.2004. Since than the Defendants 1 & 2 have dodged the matter and evading partition on the schedule property. Hence, the cause of action is continued for filing of the suit for partition and seeking the relief of equal share on the schedule properties.



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27. COURT FEE :

The plaintiffs filed the suit for partition and separate possession of the schedule property and to give equal share on the schedule property. As the share of the plaintiffs is more than Rs. 10-00 lakhs, separate valuation slip is filing for the purpose of court fee.

PRAYER

WHEREFORE, the plaintiffs prays that this Hon'ble Court may be pleased to :-

- (a) Pass a judgment and decree decreeing the suit schedule property granting partition and separate possession by giving 4/6th equal share of the schedule proper tot all the plaintiffs.
- (b) Pleased to issue a direction directing the Defendants 19 to 21 directing them not to give any rights or records or revenue entry on the schedule property in the name of the Defendants 3 to 18.
- (c) Further, directing the Defendants authority not to allow the claim of the Defendants 3 to 18 either creating share or right on the schedule property and further to create the records are illegal if right is already obtained by the Defendants 3 to 18 and the said claim are not binding on the plaintiffs in relegating to the suit schedule properties.



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(d) Further direct the Defendants 19 to 21 to uphold the share of the plaintiffs equally between plaintiffs and Defendants 1 & 2 on the schedule property.

(e) Pass any such other orders or reliefs as deems fit in the above facts and circumstances of the case and to award the cost of the suit in the interest of justice and equity.

SCHEDULE

All the piece and parcel of the land Sy. No. 25, measuring 1 Acre 35 guntas and Sy. No. 24/3 measuring 2 Acres 35 guntas, situated at Valagerhalli village, Kengeri Satellite Town, Bangalore south Taluk, which totally extent 4 Acres 23 Guntas and bounded on :-

East by	:	Remaining property of Smt. Munilakshamma
West by	:	K.T. Basavrajappa's Land
North by	:	Land belonging to Sri. Nagaraja and Kote Nanjappa
South by	:	Smt. Munilakshamma's Sri. Huchppa and Bagalur Munishammappa's land


Advocate for Plaintiffs


1(b). Sri. Nagaraju @ Munivenkatappa
and GPA holder of the other Plaintiffs
PLAINTIFFS

VERIFICATION

I, Sri. Nagaraju @ Munivenkatappa, the LR of plaintiff No. 1(b), and GPA Holder of the other plaintiffs, do hereby declare that this is my name and signature and that what is stated above is true and correct to the best of my knowledge, belief and information.

Bengaluru

Date: 16/3/2025




Sri. Nagaraju @ Munivenkatappa
and GPA holder of the other Plaintiffs
Plaintiffs

IN THE COURT OF THE CITY CIVIL JUDGE AT BENGALURU

O.S No. 9633/2004

BETWEEN :

Sri. Hanumappa

Since dead by his LRs & Ors.

... Plaintiffs

AND :

Sri. Radhakrishna

Since dead by his LRs & Ors.

... Defendants

VERIFYING AFFIDAVIT

I, Sri. Nagarajau @ Munivenkatappa, S/o. late Hanumappa, aged about 59 years, residing at Valagerhalli Village, Kengeri Satellite Town, Bangalore Suoth Taluk, Bangalore – 560 060, do hereby solemnly affirm and state on oath as follows ;

1. I am the LR No. 1 (b) of the deceased plaintiff No.1 in the above case and I am conversant with the facts of the above case and I am authorised and empowered to swear to this affidavit on behalf of the other plaintiffs.

2. That the statement made in paragraphs 1 to 26 of the accompanying amended plaint are true and correct to the best of my knowledge, information and belief.

3. That this is my name and signature.

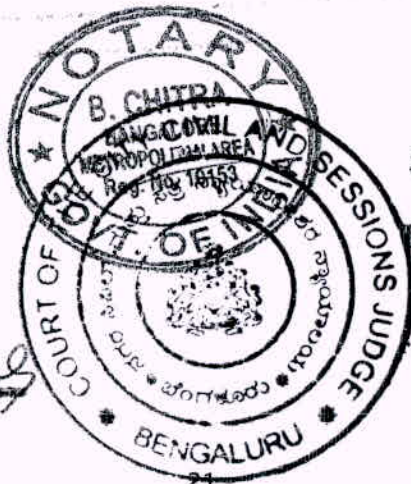
Identified by me

Advocate

Bengaluru

Date: 16/3/2023

No. Of Corrections

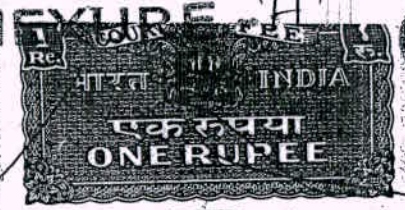


Nag

DEPONENT

SWORN TO BEFORE ME

B. CHITRA, B.A.L., LL.B.
ADVOCATE & NOTARY PUBLIC
GOVT. OF INDIA
5/1, 1st Floor, 3rd Cross
Nagaraj Reddy Layout, Banaswadi Road
BANGALORE - 560 023



ತಹಶೀಲ್ದಾರರ ಸಾಹೇಬರವರಿಗೆ,
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲೂಕು
ಬೆಂಗಳೂರು.

ಯುಂಧ.

ಹೆಚ್. ಶಂಕರಪ್ಪ,
ವಡಿಗೆರಹಳ್ಳಿ ಗ್ರಾಮ,
ಕೆಂಗೇರಿ ಹೋಬಳಿ,
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲೂಕು,



ಮಾನ್ಯರೇ,

ವಿಷಯ:- ಸರ್ವೆ ನಂಬರು ಬದಲಾವಣೆಯಾಗಿರುವ ಬಗ್ಗೆ

8. 12/3

2001 RRT

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಇದೇ ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲೂಕು,
ಕೆಂಗೇರಿ ಹೋಬಳಿ, ವಡಿಗೆರಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆನಂಬರು, 24:3 ರ ಜಮೀನು ನಮ್ಮ
ತಂದೆಯವರಿಗೆ ಕ್ರಯವಾಗಿರುತ್ತದೆ.

2017

ಸದರಿ ಕ್ರಯಪತ್ರ ನೋಂದಣಿ ವೇಳೆಯಲ್ಲಿ ಸರ್ವೆನಂಬರು 24:3 ರ ಬದಲಾಗಿ
ಸರ್ವೆ ನಂಬರು 24:8 ಎಂಬುದಾಗಿ ಇಹ ತಪ್ಪಾಗಿ ನೋಂದಣಿಯಾಗಿರುತ್ತದೆ.

12

ಸದರಿ ಸರ್ವೆನಂಬರು ಜಮೀನುಗಳು, ಹನುಮ ಬ್ಲಾಕ್ ಗುರುಪಾ ಎಂಬುವವರ ಹೆಸರಿನಲ್ಲಿ
ಸರ್ವೆನಂ 24:3, 24:8, ಸರ್ವೆನಂ 24:13 ರ ಜಮೀನುಗಳು ಇವರ ಹೆಸರಿನಲ್ಲಿ ದಾಖಲಾಗಿರುತ್ತದೆ
ಹಾಗೂ ನಾವು ಹಾಲ್ಕಿ ಸರ್ವೆ ನಂಬರು 24:3 ರಲ್ಲಿ ನಾವು ಅನುಭವದಲ್ಲಿರುವ ಕ್ರಯಪತ್ರ,
ನೋಂದಣಿಯಾದ ದಾಖಲೆಯಲ್ಲಿನಿಂದಲೂ ನಾವು ಸರ್ವೆನಂ 24:3 ರಲ್ಲಿ ಅನುಭವಿಸಿಕೊಂಡು
ಬಂದ ಈಗ ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ ನಮ್ಮ ಅನುಭವದ ಜಮೀನು ಸರ್ವೆನಂಬರು 24:8
ಎಂಬುದಾಗಿ ತಪ್ಪಾಗಿ ನಮೂದಾಗಿರುತ್ತದೆ.

ಅದುದರಿಂದ ನಾವು ಅನುಭವದಲ್ಲಿರುವ ಸರ್ವೆನಂಬರು 24:3 ರ ಬದಲು ಸರ್ವೆನಂಬರು
24:8 ಎಂಬುದಾಗಿ ತಪ್ಪಾಗಿ ನಮೂದಾಗಿರುತ್ತದೆ. ಅದುದರಿಂದ ಕೈ ತಪ್ಪಿನಿಂದಾಗಿ ಸರ್ವೆನಂ
24:3 ರ ಬದಲಾಗಿ 24:8 ಎಂಬುದಾಗಿ ತಪ್ಪಾಗಿ ಪರಿಷ್ಕರಿಸಲಾಗಿರುವುದನ್ನು ಸರ್ವೆನಂ 24:3
ಎಂಬುದಾಗಿ ತಿದ್ದುಪಡಿ ಮಾಡಿಕೊಡಲು ನಾನು ಈ ಮೂಲಕ ತಮ್ಮಲ್ಲಿ ಮನವಿ ಮಾಡಿ
ಕೊಳ್ಳುತ್ತೇನೆ.

ಹಾಗೂ ನಾವು ಹಾಲ್ಕಿ ಅನುಭವದಲ್ಲಿರುವ ಜಮೀನಿನ ಸರಿಯಾದ ವಿವರ:-

185

ଅଧ୍ୟାୟ-୧୦. ଡିଡ଼ 403/2000-01

RT(1) e R 1968/2000-01

తరుణి లాల్ కింగ్స్టన్, న. ఆంధ్ర ప్రదేశ్

ಎಥ್ಯಂಯ:- ಕೊನೆಗೆ ಕೊಂಬಾಳೆ ವಾಕ್ಯವೇ ಇರಬಹುದು ಪ್ರ.ನಂ ೨೪/೮

త పదలు ప్ర.నం 24/3 అందు కిస్తుంది

ಮಾಣಿ ಬ್ರಹ್ಮ, ಮಾತೃ ಪೂಜೆ, ಯಾಚನಾ

ದಾಕ್ಷಿಣ್ಯ ಸಂಸ್ಥೆಗಳು ಬಳಸುವ ರೀತಿ

RRT 9/4/2001

2020年12月15日

॥ श्रीगणेशाय नमः ॥

RTI CR 1968/2000-01

ಪ್ರಾಂತ್ಯ ಸಂಪನ್ಮೂಲ ಸಂಶೋಧನಾ ಸಂಸ್ಥೆ, ಬೆಂಗಳೂರು

ಕನ್ನಡ ಹಿರಿಯ ಬರಗನ ಸ್ವಾತಂತ್ರ್ಯ ಚಳುವಳಿಯಲ್ಲಿ ಕೊಡುಗೆಯನ್ನು ಕೊಟ್ಟವರಲ್ಲಿ

~~933~~ ၁၀၆၂ ဘဝသိဒ္ဓါ ၃ က်

ವಚನಕಂಠಾಚಿ ದ.ನಂ 24/3 ತಳೊ ಪ್ರಾಚೀನ ಸ್ತಂಭಿ .

60వరో పైరుత్స నిర్వహణకు లిందు శిక్షణ మానో, వాయువ్యనిర్వహణ

అందు Ricశక్తితర మనే, మౌత్తు అనునిన అత్త రాకజే అనుని

ಮೊದಲ ಬಾರಿಗೆ ಬಿ.ಎ. ರೀತಿಗಳು ಉಳಿದಿವೆ. ಇದರಲ್ಲಿ

6259098 జి.జి. శంకర ప్రసాద ముందు నివాసము, ఆంధ్రప్రదేశ్

ಪ್ರಾಂತ್ಯ ಸರ್ಕಾರದಿಂದ ದತ್ತವಾಗಿರುವ ಉತ್ಪಾದನೆಯು ಈ ಕೆಳಗಿನಂತಿರುತ್ತದೆ:

(Handwritten notes in Hindi)

[illegible]

ಪ್ರಾಚಾರ್ಯರು ತುಂಬಿರುವ - ಇವೆರಡಕ್ಕೂ ಏಕತೆಯುಂಟು

[illegible]

ಅನೇನ. ಶಿಕ್ಷೆ ಬಂದಿ ಮುಂದಕ್ಕೆ ಹಾಕಿ ಎಂಜಿಎಸ್ ಸಿ. ಡಿ.ಕೆ ಹಾಕಿ

ವನ್ಯ ಕಿಚ್ಚಿದ್ರಕಲ್ಮ ಮುಚ್ಚಿ ಸುಮ ವರಾಡಿಕಂಪ್ರಾಕುಕಂಪಂ ಬಂಜು.

ಪ್ರಶ್ನೆ: ಪಾಕಿಸ್ತಾನದ ಒಬ್ಬನು, ಬತ್ತಕ್ಕೆ ಕಸಗಾರಿಕೆ.

అంబా గ్రామ స్వరూపం ఆర్కివలను కి. కె. కె. నగరం నుండి గిరిజా కలెక్షన్

3. 2. 3. 4. 5. 6. 7. 8. 9. 10. 11. 12. 13. 14. 15. 16. 17. 18. 19. 20. 21. 22. 23. 24. 25. 26. 27. 28. 29. 30. 31. 32. 33. 34. 35. 36. 37. 38. 39. 40. 41. 42. 43. 44. 45. 46. 47. 48. 49. 50. 51. 52. 53. 54. 55. 56. 57. 58. 59. 60. 61. 62. 63. 64. 65. 66. 67. 68. 69. 70. 71. 72. 73. 74. 75. 76. 77. 78. 79. 80. 81. 82. 83. 84. 85. 86. 87. 88. 89. 90. 91. 92. 93. 94. 95. 96. 97. 98. 99. 100. 101. 102. 103. 104. 105. 106. 107. 108. 109. 110. 111. 112. 113. 114. 115. 116. 117. 118. 119. 120. 121. 122. 123. 124. 125. 126. 127. 128. 129. 130. 131. 132. 133. 134. 135. 136. 137. 138. 139. 140. 141. 142. 143. 144. 145. 146. 147. 148. 149. 150. 151. 152. 153. 154. 155. 156. 157. 158. 159. 160. 161. 162. 163. 164. 165. 166. 167. 168. 169. 170. 171. 172. 173. 174. 175. 176. 177. 178. 179. 180. 181. 182. 183. 184. 185. 186. 187. 188. 189. 190. 191. 192. 193. 194. 195. 196. 197. 198. 199. 200. 201. 202. 203. 204. 205. 206. 207. 208. 209. 210. 211. 212. 213. 214. 215. 216. 217. 218. 219. 220. 221. 222. 223. 224. 225. 226. 227. 228. 229. 230. 231. 232. 233. 234. 235. 236. 237. 238. 239. 240. 241. 242. 243. 244. 245. 246. 247. 248. 249. 250. 251. 252. 253. 254. 255. 256. 257. 258. 259. 260. 261. 262. 263. 264. 265. 266. 267. 268. 269. 270. 271. 272. 273. 274. 275. 276. 277. 278. 279. 280. 281. 282. 283. 284. 285. 286. 287. 288. 289. 290. 291. 292. 293. 294. 295. 296. 297. 298. 299. 300. 301. 302. 303. 304. 305. 306. 307. 308. 309. 310. 311. 312. 313. 314. 315. 316. 317. 318. 319. 320. 321. 322. 323. 324. 325. 326. 327. 328. 329. 330. 331. 332. 333. 334. 335. 336. 337. 338. 339. 340. 341. 342. 343. 344. 345. 346. 347. 348. 349. 350. 351. 352. 353. 354. 355. 356. 357. 358. 359. 360. 361. 362. 363. 364. 365. 366. 367. 368. 369. 370. 371. 372. 373. 374. 375. 376. 377. 378. 379. 380. 381. 382. 383. 384. 385. 386. 387. 388. 389. 390. 391. 392. 393. 394. 395. 396. 397. 398. 399. 400. 401. 402. 403. 404. 405. 406. 407. 408. 409. 410. 411. 412. 413. 414. 415. 416. 417. 418. 419. 420. 421. 422. 423. 424. 425. 426. 427. 428. 429. 430. 431. 432. 433. 434. 435. 436. 437. 438. 439. 440. 441. 442. 443. 444. 445. 446. 447. 448. 449. 450. 451. 452. 453. 454. 455. 456. 457. 458. 459. 460. 461. 462. 463. 464. 465. 466. 467. 468. 469. 470. 471. 472. 473. 474. 475. 476. 477. 478. 479. 480. 481. 482. 483. 484. 485. 486. 487. 488. 489. 490. 491. 492. 493. 494. 495. 496. 497. 498. 499. 500. 501. 502. 503. 504. 505. 506. 507. 508. 509. 510. 511. 512. 513. 514. 515. 516. 517. 518. 519. 520. 521. 522. 523. 524. 525. 526. 527. 528. 529. 530. 531. 532. 533. 534. 535. 536. 537. 538. 539. 540. 541. 542. 543. 544. 545. 546. 547. 548. 549. 550. 551. 552. 553. 554. 555. 556. 557. 558. 559. 560. 561. 562. 563. 564. 565. 566. 567. 568. 569. 570. 571. 572. 573. 574. 575. 576. 577. 578. 579. 580. 581. 582. 583. 584. 585. 586. 587. 588. 589. 590. 591. 592. 593. 594. 595. 596. 597. 598. 599. 600. 601. 602. 603. 604. 605. 606. 607. 608. 609. 610. 611. 612. 613. 614. 615. 616. 617. 618. 619. 620. 621. 622. 623. 624. 625. 626. 627. 628. 629. 630. 631. 632. 633. 634. 635. 636. 637. 638. 639. 640. 641. 642. 643. 644. 645. 646. 647. 648. 649. 650. 651. 652. 653. 654. 655. 656. 657. 658. 659. 660. 661. 662. 663. 664. 665. 666. 667. 668. 669. 670. 671. 672. 673. 674. 675. 676. 677. 678. 679. 680. 681. 682. 683. 684. 685. 686. 687. 688. 689. 690. 691. 692. 693. 694. 695. 696. 697. 698. 699. 700. 701. 702. 703. 704. 705. 706. 707. 708. 709. 710. 711. 712. 713. 714. 715. 716. 717. 718. 719. 720. 721. 722. 723. 724. 725. 726. 727. 728. 729. 730. 731. 732. 733. 734. 735. 736. 737. 738. 739. 740. 741. 742. 743. 744. 745. 746. 747. 748. 749. 750. 751. 752. 753. 754. 755. 756. 757. 758. 759. 760. 761. 762. 763. 764. 765. 766. 767. 768. 769. 770. 771. 772. 773. 774. 775. 776. 777. 778. 779. 780. 781. 782. 783. 784. 785. 786. 787. 788. 789. 790. 791. 792. 793. 794. 795. 796. 797. 798. 799. 800. 801. 802. 803. 804. 805. 806. 807. 808. 809. 810. 811. 812. 813. 814. 815. 816. 817. 818. 819. 820. 821. 822. 823. 824. 825. 826. 827. 828. 829. 830. 831. 832. 833. 834. 835. 836. 837. 838. 839. 840. 84

ಕೆಲವು ಬದ್ಧತೆಗಳು ಇದರಲ್ಲಿ ಇಲ್ಲವೆಂದು ತಿಳಿದುಬಂದಿದೆ. ಈಗಿನ ಸ್ಥಿತಿಗತಿಗಳನ್ನು ಗಮನಿಸಿ, ಈಗಿನ ಸ್ಥಿತಿಗತಿಗಳನ್ನು ಗಮನಿಸಿ, ಈಗಿನ ಸ್ಥಿತಿಗತಿಗಳನ್ನು ಗಮನಿಸಿ.

[illegible]

25 செப்டம்பர் 2012

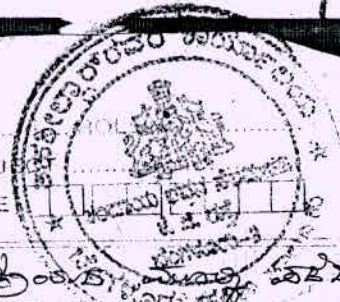
ಶ್ರೀ.ನಂ ೨೫/12 ಬೆಳಿಪ್ಪಾಪ್ಪ ನರರ ಅಪ್ಪನೊಲು ಶ್ರೀ.ನಂ ೨೫ ಬಸವ

ಕಾಶ್ಮೀರದ ಬಿಜಿನೆಸ್‌ಮೆನ್‌ಗಳು ಐಟಿ ಸಂಸ್ಥೆಗಳಿಗೆ ಸಹಕರಿಸುವುದರ ಬಗ್ಗೆ ಆಸಕ್ತಿ ವಹಿಸುತ್ತಿರುವುದಾಗಿ ತಿಳಿದು ಬಂದಿದೆ.

విద్యుత్తు 2 ఏకరే 36 సూచకీ విజ్ఞానము, కైమలారు కం నభిగ్న

18. 18. 18.

King



NAME
 CLASS
 TOPIC
 DATE

ಜೀರ್ಣೋದ್ಧಾರ ತಂಡ ಹನುಮಂತಪುರವಾಸಿ ಕ್ರಿಯಾತ್ಮಕವಾಗಿ ಪರಿಶ್ರಮ
 ಬಲಗೊಳಿಸುತ್ತಿದೆ. ಇದರಲ್ಲಿ ಒಂದು ಕ್ರಿಯಾಪತ್ರವನ್ನು ಡಿ.ನಂ.24/8
 ಎಂಬ ಸಂಖ್ಯೆಯಲ್ಲಿ ಜಿಲ್ಲಾ ಕ್ರಿಯಾಪತ್ರವನ್ನು ನಮೂದು ಮಾಡಿ ಪಟ್ಟಿಯ
 ಡಿ.ನಂ. 24/3ಕ್ಕೆ ತಾಳಿಬಿಟ್ಟಿದೆ. ಡಿ.ನಂ. 24/8ಕ್ಕೆ ತಾಳಿಬಿಟ್ಟಿರುವ
 ಒಂದು ಚಿತ್ರಕಂಪನೆಯ ಬಗ್ಗೆ: 1956 ರಿಂದ ಹಿಡಿದು ಪ್ರತಿ ಬಾರಿ ಕುಟುಂಬ
 ಕ್ಕೆ ತಪ್ಪಿನಂಶ ನೀಡಿ ಚಿತ್ರಕಂಪನೆಯನ್ನು ಮಾಡಬೇಕೆಂದು ನಿರ್ದೇಶಿಸಿ
 ಬರುತ್ತಿದೆ.

ಇದರ ಡಿ.ನಂ. 24/3 ಕ್ಕೆ ರವಾನೆಯಾದ ಪಂಚಾಯತ್ ರಾಜ್
 ಒಂದು ಡಿ.ನಂ. 2-01 ಎ.ಸಂ. ವಿಜ್ಞಾನಕ ಬರಹ ಬಳಕೆಗಾಗಿ
 ಹನುಮಂತಪುರವಾಸಿ ತರುಣಿಯೊಬ್ಬರ ಮೊಮ್ಮಗನು ಜಿ.ಕೆ.ಇಂಟರ್
 ಮೀಡಿಯೇಟ್ ಮತ್ತು ಹೈಸ್ಕೂಲಿನಿಂದ ಡಿ.ನಂ. 18/9-99
 ಹಂತೆ ಬಳಕೆಗೊಳಿಸುತ್ತಿದ್ದೆ. ಇದರ ಡಿ.ನಂ. 24/8ಕ್ಕೆ ಜೀರ್ಣೋದ್ಧಾರ
 ಕೆಳಕಂಡ ನಿಯಮಗಳ ಅನ್ವಯದಲ್ಲಿ ಹನುಮಂತಪುರವಾಸಿ
 ಸ್ಥಳೀಯರೊಬ್ಬರ ಮೊಮ್ಮಗನು ಪ್ರತಿಬಂಧಿಸಿ ವಿರೋಧಿಸಿ
 ಬಂದಿದ್ದಾನೆ. ಇದರಲ್ಲಿ ನರಸೀಪುರವಾಸಿ ಕ್ರಿಯಾತ್ಮಕವಾಗಿ ವಿರೋಧಿಸಿ
 ನಡೆಸುತ್ತಿದ್ದಾನೆ. ಮೂಲಕ ಮೂಲಕವೂ 24/8ರ ಅನ್ವಯ
 ಹನುಮಂತಪುರವಾಸಿ ಅನ್ವಯ ಮೊಮ್ಮಗನು ಕ್ರಿಯಾತ್ಮಕವಾಗಿದೆ.

ಇದರ ಡಿ.ನಂ. 24/3 ಮತ್ತು 24/8 ರೀತಿಯಲ್ಲಿ
 ಉಳಿಸಿಟ್ಟುಕೊಳ್ಳುವುದಕ್ಕೆ ಹನುಮಂತಪುರವಾಸಿಗಳು, ಡಿ.ನಂ.
 24/8ರ ಮೂಲಕ, ಡಿ.ನಂ. ನರಸೀಪುರವಾಸಿಗಳು ಹಾಗೂ ಕೆಳಕಂಡ
 ಕೆಳಕಂಡ ಮತ್ತು ಇಂತಹವರಿಗೆ ಕೆಳಕಂಡ ಕ್ರಿಯಾತ್ಮಕ
 ಪತ್ರವನ್ನು ತೆಗೆದುಕೊಳ್ಳುವ ಜೀರ್ಣೋದ್ಧಾರ ಕೆಳಕಂಡವರು
 ಸ್ಥಳೀಯರೊಬ್ಬರ ಡಿ.ನಂ. 24/3ರ ಅನ್ವಯ ಡಿ.ನಂ. 24/8 ಎಂಬ
 ಕ್ರಿಯಾತ್ಮಕವಾಗಿ ಇದರ ಡಿ.ನಂ. 24/3ಕ್ಕೆ ಜಿ.ಕೆ.ಇಂಟರ್
 ಮೀಡಿಯೇಟ್ ಮತ್ತು ಹೈಸ್ಕೂಲಿನಿಂದ ಡಿ.ನಂ. 18/9-99
 ಹಂತೆ ಬಳಕೆಗೊಳಿಸುತ್ತಿದ್ದೆ. ಇದರ ಡಿ.ನಂ. 24/8ಕ್ಕೆ ಜೀರ್ಣೋದ್ಧಾರ
 ಕೆಳಕಂಡ ನಿಯಮಗಳ ಅನ್ವಯದಲ್ಲಿ ಹನುಮಂತಪುರವಾಸಿ
 ಸ್ಥಳೀಯರೊಬ್ಬರ ಮೊಮ್ಮಗನು ಪ್ರತಿಬಂಧಿಸಿ ವಿರೋಧಿಸಿ
 ಬಂದಿದ್ದಾನೆ. ಇದರಲ್ಲಿ ನರಸೀಪುರವಾಸಿ ಕ್ರಿಯಾತ್ಮಕವಾಗಿ ವಿರೋಧಿಸಿ
 ನಡೆಸುತ್ತಿದ್ದಾನೆ. ಮೂಲಕ ಮೂಲಕವೂ 24/8ರ ಅನ್ವಯ
 ಹನುಮಂತಪುರವಾಸಿ ಅನ್ವಯ ಮೊಮ್ಮಗನು ಕ್ರಿಯಾತ್ಮಕವಾಗಿದೆ.

ಜೀರ್ಣೋದ್ಧಾರ ಹನುಮಂತಪುರವಾಸಿ ಸ್ಥಳೀಯರೊಬ್ಬರ ಮೊಮ್ಮಗನು
 ಮತ್ತು ಸ್ಥಳೀಯರೊಬ್ಬರ ಮೊಮ್ಮಗನು ಮತ್ತು ಕ್ರಿಯಾತ್ಮಕವಾಗಿ ನಮೂದು
 ಮಾಡಿ ಪಟ್ಟಿಯ ಬಳಕೆಗೊಳಿಸುತ್ತಿದ್ದೆ. ಇದರ ಡಿ.ನಂ. 24/3ಕ್ಕೆ

~~பெரிய~~
~~தமிழ்நாடு~~
கோவை வுத்
கோவை வுத் காலகால

 $\frac{1}{2} a/2$

 2-20 m
2-21 m
2-22 m
2-23 m
2-24 m
2-25 m
2-26 m
2-27 m
2-28 m

TYPED COPY
OF
Annexure J

ರಾ. ನಿ. ಕೆಂ.ಪಿ.ಆರ್. 403/2000-01
ಆರ್. ಆರ್. ಟಿ. (1)ಸಿಆರ್ 1968/2000-01

ತಹಸೀಲ್ದಾರ್ ಬೆಂಗಳೂರು ದ. ತಾ. ರವರ ಸನ್ನಿಧಾನಕ್ಕೆ

ವಿಷಯ : ಕೆಂಗೇರಿ ಹೋಬಳಿ, ವಳಗೇರಿಹಳ್ಳಿ ಸ. ನಂ. 24/ಬಿ ರ ಬದಲು ಸ.
ನಂ. 24/3 ಎಂದು ತಿದ್ದುಪಡಿ ಮಾಡಿ ಖಾತೆ ಮತ್ತು ಪಹಣಿಯಲ್ಲಿ
ದುರಸ್ತಿಗೊಳಿಸಿಕೊಡಲು ಕೋರಿರುವ ಬಗ್ಗೆ ಆರ್. ಆರ್. ಟಿ.
(1)ಸಿಆರ್ 1968/2000-01

ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ವಳಗೇರಿಹಳ್ಳಿ ಹೆಚ್. ಶಂಕರಪ್ಪ ರವರ ಅರ್ಜಿ
ಬಗ್ಗೆ ಸ್ಥಳ ತನಿಖೆ ಮಾಡಲಾಗಿ ಈ ಕೆಳಕಂಡ ಅಂಶಗಳು ಕಂಡು ಬಂದಿರುತ್ತದೆ.

ವಳಗೇರಿಹಳ್ಳಿ ಸ. ನಂ. 24/3 ರಲ್ಲಿ ಪಶ್ಚಿಮದ ಕಡೆ ಅಂದರೆ ನೈರುತ್ಯ
ದಿಕ್ಕಿನಲ್ಲಿ ಒಂದು ಶೀಟಿನ ಮನೆ ವಾಯುವ್ಯ ದಿಕ್ಕಿನಲ್ಲಿ ಒಂದು ಆರ್.ಸಿ.ಸಿ.
ಕಟ್ಟಡದ ಮನೆ ಮತ್ತು ಜಮೀನಿನ ಉತ್ತರದ ಕಡೆ ಅಂಚಿನಲ್ಲಿ ಮಧ್ಯಭಾಗದಲ್ಲಿ
ಒಂದು ಆರ್.ಸಿ.ಸಿ. ಕಟ್ಟಡವಿರುತ್ತದೆ. ಸದರಿ ಕಟ್ಟಡವು ಅರ್ಜಿದಾರರಾದ ಹೆಚ್.
ಶಂಕರಪ್ಪರವರ ಮನೆಯಾಗಿರುತ್ತದೆ. ಇದಲ್ಲದೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಪೂರ್ವದ
ಕಡೆ ಒಂದು ಕೊಳವೆ ಭಾವಿ ಮತ್ತು ದಕ್ಷಿಣದ ಕಡೆ ಒಂದು ಕೊಳವೆ ಭಾವಿ
ಇರುತ್ತದೆ. ಸದರಿ ಭಾವಿಗಳನ್ನು ಅರ್ಜಿದಾರರಾದ ಹೆಚ್. ಶಂಕರಪ್ಪನವರ
ವ್ಯವಸಾಯದ ಉದ್ದೇಶಕ್ಕಾಗಿ ಕೊರೆಸಿದ ಭಾವಿಗಳೆಂದು ತನಿಖೆಯ
ಸಮಯದಲ್ಲಿ ಹಾಜರಿದ್ದ ಗ್ರಾಮಸ್ಥರು ತಿಳಿಸಿರುತ್ತಾರೆ. ಈ ಕಟ್ಟಡಗಳು ಮತ್ತು
ಭಾವಿಗಳನ್ನು ಹೊರತು ಪಡಿಸಿ, ಉಳಿದ ಜಮೀನು ಖಾಲಿ ಇರುತ್ತದೆ. ಸದರಿ
ಜಮೀನಿನ ಚಕ್ಕುಬಂದಿ ಪೂರ್ವಕ್ಕೆ : ಹಳ್ಳ ಎಂದಿರುತ್ತದೆ. ಆದರೆ ಹಳ್ಳವನ್ನು
ಅರ್ಜಿದಾರರು ಮುಚ್ಚಿ ಸಮ ಮಾಡಿರುವುದು ಕಂಡು ಬಂದಿದೆ. ಪಶ್ಚಿಮಕ್ಕೆ :
ಸಾಕಮ್ಮನವರ ಜಮೀನು. ಉತ್ತರಕ್ಕೆ ದನಗಳ ಓಣಿ ಎಂದು ಗ್ರಾಮಸ್ಥರು
ತಿಳಿಸಿರುತ್ತಾರೆ. ಆದರೆ ನಕಾಶೆಯಲ್ಲಿ ಕಾಲುದಾರಿ ಇರುತ್ತದೆ. ಆದರೆ ಈಗ
ಯಾವುದೇ ದಾರಿಯಾಗಲಿ ಅಥವಾ ಓಣಿ ಇರುವುದು ಕಂಡು ಬರುವುದಿಲ್ಲ.
ಸದರಿ ಜಮೀನಿಗೂ ಮತ್ತು ಹೌಸಿಂಗ್ ಬೋರ್ಡುರವರು ನಿರ್ಮಿಸಿರುವ

ಕಟ್ಟಡಗಳಗೂ ಮಧ್ಯೆ ಜಾಗವಿರುತ್ತದೆ. ದಕ್ಷಿಣಕ್ಕೆ ಅಕ್ಕಯಮ್ಮನವರ ಜಮೀನೆಂದು ತಿಳಿಸಿರುತ್ತಾರೆ. ಆದರೆ ಸ.ನಂ. 24/12 ಅಕ್ಕಯ್ಯಮ್ಮನವರ ಜಮೀನೆಂದು ಸ. ನಂ. 25 ಬಸವರಾಜುರವರ ಜಮೀನೆಂದು ಗ್ರಾಮಸ್ಥರು ತಿಳಿಸಿರುತ್ತಾರೆ. ಈ ಮಧ್ಯೆ ಇರುವ 2 ಎಕರೆ 36 ಗುಂಟೆ ಜಮೀನನ್ನು ಸುಮಾರು 50 ವರ್ಷಗಳ ಅವಧಿಯಿಂದ ಅರ್ಜಿದಾರರ ತಂದೆ ಹನುಮ ನಾಗಪ್ಪರವರು ತರುವಾಯ ಅರ್ಜಿದಾರರು ಮತ್ತು ಅವರ ಸಹೋದರರು ಅನುಭವದಲ್ಲಿದ್ದು, ಸ್ವಾಧೀನರಾಗಿರುತ್ತಾರೆ ಎಂದು ಗ್ರಾಮಸ್ಥರು ತಿಳಿಸಿರುತ್ತಾರೆ ಮತ್ತು ಈಗ ಸದರಿ ಜಮೀನು ಅರ್ಜಿದಾರರೇ ಸ್ವಾಧೀನದಲ್ಲಿರುವುದು. ಅವರು ವಾಸಿಸುತ್ತಿರುವ ಮನೆಗಳಿಂದ ದೃಢಪಟ್ಟಿರುತ್ತದೆ.

ವಳಗೇರಿಹಳ್ಳಿ ಸ. ನಂ. 24/8 ರ ಜಮೀನನ್ನು ಸ್ಥಳ ತನಿಖೆ ಮಾಡಲಾಗಿ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ನಿವೇಶನಗಳನ್ನು ರಚಿಸಿರುತ್ತಿರುತ್ತಾರೆ ಮತ್ತು ಕೆಲವು ಕಟ್ಟಡಗಳಲ್ಲಿ ಈಗಾಗಲೇ ಕೆಲವರು ವಾಸ ಮಾಡುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿದೆ. ಸದರಿ ಜಮೀನಿನ ಬಗ್ಗೆ ಗ್ರಾಮಸ್ಥರನ್ನು ವಿಚಾರಿಸಲಾಗಿ ಸದರಿ ಜಮೀನು ನರಸಮ್ಮ ಉ ಮೂಗಮ್ಮರವರ ಜಮೀನೆಂದು ಸದರಿ ಜಮೀನನ್ನು ಕೆಲವರು ಕ್ರಯಕ್ಕೆ ಅಥವಾ ಜಿ.ಪಿ. ಎ. ಪ್ರಕಾರ ಪಡೆದು ನಿವೇಶನಗಳನ್ನು ರಚಿಸಿ ಮಲ್ಲೇಶ್ವರಂ ಟೈಲರಿಂಗ್ ಕೋ ಆಪರೇಟಿವ್ ಸೊಸೈಟಿ ರವರ ಮುಖಾಂತರ ನಿವೇಶನಗಳಿಗೆ ಹಕ್ಕು ಪತ್ರ ನೀಡಿದ್ದಾರೆಂದು ತಿಳಿಸಿರುತ್ತಾರೆ. ಉದಾಹರಣೆಗೆ ಒಂದು ಪೋಸೆಷನ್ ಸರ್ವೆಪಿಕೇಟ್ ನಂ. 1184 ರ ಜೆರಾಕ್ಸ್ ನಕಲನ್ನು ನೀಡಿರುತ್ತಾರೆ. ಕಡತಕ್ಕೆ ಲಗತ್ತಿಸಿದೆ.

ನಮ್ಮಲ್ಲಿ ಲಭ್ಯವಿರುವ ಪಹಣಿಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ ಸ. ನಂ. 24/3 ರಲ್ಲಿ 2-37 ಎ. ಗುಂ ಇದ್ದು ಇದರಲ್ಲಿ 0-09 ಗುಂಟೆ ಖರಾಬು ಇರುತ್ತದೆ. ಸದರಿ ಜಮೀನು ನರಸಮ್ಮ @ ಮಂಗಮ್ಮರವರ ಹೆಸರಿನಲ್ಲಿದ್ದು ಸದರಿ ಜಮೀನು ಬೆಂ. ಅ ಪ್ರಾ ರವರು ಭೂ ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಂಡ ಜಮೀನಾಗಿರುತ್ತದೆ. ಆದರೆ ಭೌತಿಕವಾಗಿ ಸದರಿ ಜಮೀನು ನರಸಮ್ಮರವರು ಸ್ವಾಧೀನದಲ್ಲಿರುವುದಿಲ್ಲ.

ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಅರ್ಜಿದಾರರಾದ ಹೆಚ್.ಶಂಕರಪ್ಪ ಮತ್ತು ಅವರ ಸಹೋದರರು ಸ್ವಾಧೀನದಲ್ಲಿರುತ್ತಾರೆ ಮತ್ತು ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಮನೆ ಕಟ್ಟಿಕೊಂಡು ವಾಸ ಮಾಡುತ್ತಿರುತ್ತಾರೆ ಅಲ್ಲದೆ ಶಂಕರಪ್ಪರವರು ಕೊಳವೆ ಭಾವಿಗಳನ್ನು ಕೊರಿಸಿಕೊಡುವುದು ಸಹ ಕಂಡು ಬಂದಿದೆ. ಸದರಿ ಜಮೀನನ್ನು ಅರ್ಜಿದಾರರ ತಂದೆ ಹನುಮ ಗಂಗಪ್ಪರವರು ಸುಮಾರು 50 ವರ್ಷಗಳ ಹಿಂದಿನಿಂದಲೂ ವ್ಯಯ ಮಾಡುತ್ತಿದ್ದರೆಂದು ಗ್ರಾಮಸ್ಥರು ತಿಳಿಸಿರುತ್ತಾರೆ.

ಅರ್ಜಿದಾರರು ಅರ್ಜಿಯೊಂದಿಗೆ ಲಗತ್ತಿಟ್ಟಿರುವ ಕ್ರಯಪತ್ರ ಪರಿಶೀಲಿಸಿದಾಗ 1956 ನೇ ಇಸವಿಯಲ್ಲಿ ದುಭಾಸಿಪಾಳ್ಯದ ತಿಮ್ಮಯ್ಯನವರ ಮಗ ನಂಜಪ್ಪರವರಿಂದ ಮಸಣಪ್ಪ ರವರಿಗೆ ಶುದ್ಧ ಕ್ರಯದ ಮೂಲಕ ಬಂದಿದ್ದು, 1961 ರಲ್ಲಿ ಮಾದಯ್ಯ ಮತ್ತು ಹನುಮಕ್ಕರವರಿಗೆ ಮಸಣಪ್ಪ ರವರಿಂದ ಶುದ್ಧ ಕ್ರಯಕ್ಕೆ ಪಡೆದ ಜಮೀನಾಗಿರುತ್ತದೆ. 1967 ರಲ್ಲಿ ಮಾದಯ್ಯ ಮತ್ತು ಹನುಮಕ್ಕ ರವರಿಂದ ಅರ್ಜಿದಾರರ ತಂದೆ ಹನುಮಗಂಗಪ್ಪರವರಿಗೆ ಕ್ರಯದ ಮೂಲ್ಕ ಪಡೆದ ಜಮೀನಾಗಿರುತ್ತದೆ. ಆದರೆ ಸದರಿ ಕ್ರಯಪತ್ರದಲ್ಲಿ ಸ. ನಂ. 24/8 ಎಂದು ನಮೂದಾಗಿರುತ್ತದೆ. ಆದರೆ ಕ್ರಯಪತ್ರದಲ್ಲಿ ನಮೂದಿಸಿರುವ ಚಕ್ಕುಬಂದಿ ಸ.ನಂ. 24/3 ಕ್ಕೆ ತಾಳೆ ಇರುತ್ತದೆ. ಸ. ನಂ. 24/8 ಕ್ಕೆ ತಾಳೆ ಇರುವುದಿಲ್ಲ. ಸದರಿ ಅಚಾತುರ್ಯವು ಬಹುಶಃ 1956 ರ ಹಿಂದೆ ಪತ್ರ ಬರೆದು ಕೊಡುವಾಗ ಕೈತಪ್ಪಿನಿಂದ ನಡೆದ ಅಚಾತುರ್ಯವಾಗಿರಬಹುದೆಂದು ಸಂಶಯ ಬರುತ್ತದೆ.

ಸ. ನಂ. 24/8 ಪಹಣಿಯನ್ನು ಪರಿಶೀಲಿಸಿದಾಗ ಸದರಿ ಸ. ನಂ. ನಲ್ಲಿ 2-01 ಎ ಗು ವಿಸ್ತೀರ್ಣ ವಿದ್ದು ಖಾತೆದಾರರಿಂದ ಹನುಮ ಗಂಗಪ್ಪ ರವರ ತರುವಾಯ ಅವರ ಮಕ್ಕಳಾದ ಹೆಚ್. ಶಂಕರಪ್ಪ ಹೆಚ್. ಅಂಜನಪ್ಪ ಮತ್ತು ರಮೇಶರವರ ಹೆಸರಿಗೆ ಎಂ. ಆರ್. 18/98-99 ರಂತೆ ಖಾತೆ ದಾಖಲಾಗಿ ರುತ್ತದೆ. ಆದರೆ ಸದರಿ ಸ.ನಂ. 24/8 ರಲ್ಲಿ ಅರ್ಜಿದಾರರಾದ ಶಂಕರಪ್ಪನ ವರಾಗಲಿ ಅಥವಾ ಅವರ ತಂದೆ ಹನುಮಗಂಗಪ್ಪರವರಾಗಲಿ ಸ್ವಾಧೀನದಲ್ಲಿ

ರಲ್ಲವೆಂಬುದು ತಿಳಿಯ ಬಂದಿದೆ. ಹಾಗೂ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಈಗಾಗಲೇ ನರಸಮ್ಮನವರ ಪ್ರತಿನಿಧಿಗಳು ನಿವೇಶನಗಳನ್ನು ರಚಿಸಿ ಮಾರಾಟ ಮಾಡಿರುವುದರಿಂದ 24/8 ರ ಜಮೀನು ಹನುಮ ಗಂಗಪ್ಪ ರವರ ಜಮೀನಿನಲ್ಲಿ ಎಂಬುದು ದೃಢಪಟ್ಟಿರುತ್ತಾರೆ.

ಸದರಿ ಸ. ನಂ. ಗಳಿಂದ 24/3 ಮತ್ತು 24/8 ಅದಲು ಬದಲಾಗಿರುವ ಬಗ್ಗೆ ಈ ತಹಲ್ವರೆಗೆ ಹನುಮ ಗಂಗಪ್ಪರವರಾಗಲೀ ಅಥವಾ ಅವರ ಮಕ್ಕಳಾಗಲೀ, ಅಥವಾ ನರಸಮ್ಮನವರಾಗಲೀ ತಂಟೆ ತಕರಾರು ಏಕೆ ಮಾಡಲಿಲ್ಲ ಮತ್ತು ಸರಿಪಡಿಸಿಕೊಳ್ಳಲು ಏಕೆ ಪ್ರಯತ್ನ ಪಡಲಿಲ್ಲವೆಂದು ವಿಚಾರಿಸಲಾಗಿ ಅರ್ಜಿದಾರರಾ ಹೆಚ್. ಶಂಕರಪ್ಪನವರು ಸ್ವಾಧೀನದಲ್ಲಿರುವ ಸ. ನಂ. 24/3 ರ ಜಮೀನೇ ಸ. ನಂ. 24/8 ಎಂದು ತಿಳಿದುಕೊಂಡಿದ್ದೆವು. ಆದರೆ ಸದರಿ ಸ. ನಂ. 24/3 ನ್ನು ಬೆಂ ಅ ಪ್ರಾ ರದವರು ಭೂ ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳುವ ಬಗ್ಗೆ ಅಧಿಸೂಚನೆ ಹೊರಡಿಸಿ ಜಮೀನು ಸುಬರ್ದಿಗೆ ಪಡೆಯದೆ ಬಂದಾಗ ನಾವು ಸ್ವಾಧೀನದಲ್ಲಿರುವ ಜಮೀನು ಸ. ನಂ. 24/8 ಅಲ್ಲ ಎಂಬುದು ಗೊತ್ತಾಗಿ ಸ. ನಂ. 24/3 ಎಂಬುದು ಅವರಿಂದ ತಿಳಿಯತೆಂದು ಆದ್ದರಿಂದ ಸದರಿ ಸ.ನಂ. ಗಳ ಬಗ್ಗೆ ಪಹಣಿ ಮತ್ತು ಖಾತೆಗಳಲ್ಲಿ ದುರಸ್ತಿಗೊಳಿಸಿ ಕೊಡಲು ಅರ್ಜಿ ಸಲ್ಲಿಸಿದೆ ಎಂದು ತಿಳಿಸಿರುತ್ತಾರೆ.

ಅರ್ಜಿದಾರರು ಸುಮಾರು 50 ವರ್ಷಗಳ ದೀರ್ಘ ಕಾಲಾವಧಿಯ ಅನುಭವ ಮತ್ತು ಸ್ವಾಧೀನವನ್ನು ಪರಿಗಣಿಸಿ ಮತ್ತು ಕ್ರಯಪತ್ರದಲ್ಲಿ ನಮೂದಿಸಿರುವ ಚಕ್ಕುಬಂದಿಯು ಈಗ ಸ್ವಾಧೀನದಲ್ಲಿರುವ ಸ.ನಂ. 24/3 ಕ್ಕೆ ತಾಳೆ ಇರುವುದರಿಂದ ಮತ್ತು ಸ.ನಂ. 24/3 ರ ಜಮೀನಿನ ಬಗ್ಗೆ ಯಾರು ತಕರಾರು ಮಾಡಿರುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಅರ್ಜಿದಾರರ ಕೋರಿಕೆಯಂತೆ ಮತ್ತು ಗ್ರಾಮಸ್ಥರ ಅಭಿಪ್ರಾಯವನ್ನು ಪರಿಗಣಿಸಿ ಸ. ನಂ. - ಆಗಿರುವ ವ್ಯತ್ಯಾಸವನ್ನು

ತಿದ್ದುಪಡಿ ಮಾಡಿ ಪಹಣಿಯಲ್ಲಿ ದುರಸ್ತಿಗೊಳಿಸಬೇಕೆ ? ಅಥವಾ ಬೇಡವೇ ?
ಎಂಬ ಬಗ್ಗೆ ಸೂಕ್ತ ಆದೇಶಕ್ಕಾಗಿ ಕಡತ ತಯಾರಿಸಿ ಕಛೇರಿಗೆ ಸಲ್ಲಿಸಿದೆ.

ಸಹಿ
ರಾಜಸ್ವ ನಿರೀಕ್ಷಕರು
ಕೆಂಗೇರಿ ವೃತ್ತ
ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲ್ಲೂಕು

ನಿವೇದನೆ

ಅರ್ಜಿದಾರರ ಸ. ನಂ. ವ್ಯತ್ಯಾಸವಿಲ್ಲ. 24/8 ರ ಬದಲಾಗಿ 24/3 ಕ್ಕೆ ಖಾತೆ
ವರ್ಗಾವಣೆ ಕೋರಿದ್ದು 24/3 ರ ಜಮೀನಿನ ಖಾತೆ ನರಸಮ್ಮ
ನಮೂದಾಗಿರುವುದಿಲ್ಲ. ನಂತರ ಚಿಡಿಎ ಹೆಸರಿನ ಖಾತೆ ಯಾಗಿರುವುದರಿಂದ
ಮೇಲ್ಮನವಿ -ಆದ್ದರಿಂದ ಅರ್ಜಿ ವಿಲೇ ಇಡಲು ಆದೇಶ.

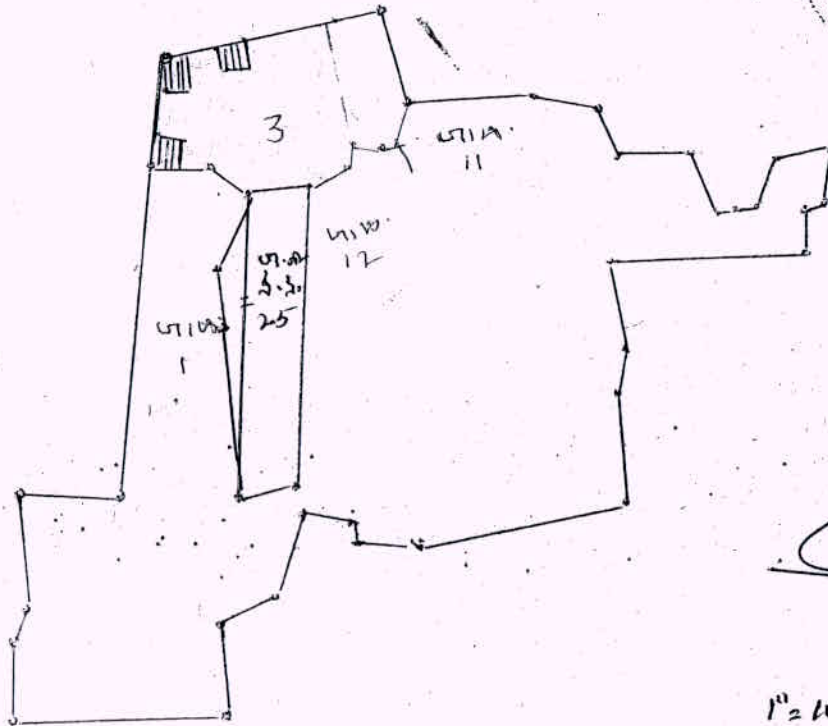
ಸಹಿ
ಅರ್ಜಿಯನ್ನು ವಿಲೇ ಇರಬಹುದು.

3/ವಿ.ಕೆ

ANNEXURE - K

ಹತ್ತಮ: ವ್ಯಕ್ತಿತ್ವ, ಜ್ಞಾನ, ಅಭಿಮಾನ, ದ್ವೇಷ.

தேதி: 24/3/2024


$$1'' = 10' 26.48''$$
[illegible]

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 89. 24/3/2021
 90. 24/3/2021
 91. 24/3/2021
 92. 24/3/2021
 93. 24/3/2021
 94. 24/3/2021
 95. 24/3/2021
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 97. 24/3/2021
 98. 24/3/2021
 99. 24/3/2021
 100. 24/3/2021

1901
L. J. H. S.
D. J. H. S.

ಟೈಪ್ಡ್ ಕಾಪಿ
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Annexure K

ಗ್ರಾಮ ವಳಗೆರೆ ಹಳ್ಳಿ ಹೊ. ಕೆಂಗೇರಿ ತಾ ಬೆಂಗಳೂರು ದಕ್ಷಿಣ
ಸರ್ವೆ ನಂ. 24/3 ರ ಬಾಬು ನಕ್ಷೆ

ತಹಸೀಲ್ದಾರ್‌ರವರ ಆದೇಶದ ನಂ. ಆರ್. ಆರ್. ಟಿ. (ವಿ) ಸಿ.ಆರ್.
196//2002 ರ ಮೇರೆಗೆ ನಕ್ಷೆ ತಯಾರಿಸಿದೆ.

ನಕ್ಷೆಯಲ್ಲಿ ಈ ಬಣ್ಣದಿಂದ ತೋರಿಸಿರುವ ಪ್ರದೇಶವನ್ನು ಅರ್ಜಿದಾರ ಶ್ರೀ
ಶಂಕರಪ್ಪನವರು ನನ್ನ ಸ್ವಾಧೀನದಲ್ಲಿ ಇರುತ್ತೆ ಎಂದು ತೋರಿಸಿರುತ್ತಾರೆ.
ಆದರೆ ಆ ಪ್ರದೇಶ ಭೀಷಣ ಇದೆ. ಈ ಚಿಹ್ನೆಯುಮದ ತೋರಿಸಿರುವುದು
ಮನೆಗಳು ಅರ್ಜಿದಾರರ ತಂದೆ 2-01 ಗುಂಟೆ ಖರಾಬು 0-05 ಗುಂಟೆ ಸಗು
2-00 ಎಕರೆ ಎಂದು. ಸ. ನಂ. 24/8 ರಲ್ಲಿ ಕ್ರಯವಾಗಿರುತ್ತದೆ. ಆದೇಸ ಸ.
ನಂ. 24/3 ರಲ್ಲಿ ಅನುಭವವಿದೆ ಎಂದು ತಿಳಿಸಿರುತ್ತಾರೆ. ವಿಸ್ತೀರ್ಣ 2-01
ಗುಂಟೆ ಸ. ನಂ. 29/3 ಬಿ.ಡಿ.ಎ ಗೆ ಭೂ ಸ್ವಾಧೀನವಾಗಿರುತ್ತೆ. ಸ. ನಂ. 24/3
ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ 2-28 ಗುಂಟೆ

ಸಹಿ

2020
 2020
 2020

7/12

600 (செலா) பிள்ளைகள்
 இரண்டு இரண்டு 24/3 ரஜஸினியா கனகசுந்தரி
 ரஜஸினியா பிள்ளைகள் இரண்டு இரண்டு
 பிள்ளைகள் இரண்டு இரண்டு இரண்டு இரண்டு
 இரண்டு இரண்டு இரண்டு இரண்டு இரண்டு
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ಸಹಿ
ಹುದ್ದೆ
ಕಛೇರಿ
ದಿನಾಂಕ 23/1/5
ಬಿಪ್ಪಣಿ :- (೧) ಮೊಂಡೂರು
ಪ್ರಮಾಣಪತ್ರ

TYPED COPY
OF
Annexure L

ಸರ್ಕಾರಕ್ಕೆ

ಬೆಂಗಳೂರು ಜಿಲ್ಲೆ ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲ್ಲೂಕು ಕೆಂಗೇರಿ ಹೋಬಳಿ ರಾ. ನಿ
ರವರ ರೂಬು ರೂಬು

ಕೆಂಗೇರಿ ಉಪನಗರ ಮತ್ತು ವಳಗೆರೆಹಳ್ಳಿ ಗ್ರಾಮಸ್ಥರು ಹೇಳಿ ಬರೆಸಿದ
ಮಹಜರ್ ಕ್ರಮವೇನೆಂದರೆ, ಇದೇ ಗ್ರಾಮದ ವಾಸಿ ಹೆಚ್. ಶಂಕರಪ್ಪ ಜಿನ್
ಲೇಟ್ ಹನುಮಗಂಗಪ್ಪ (ಉ) ಚಿಕ್ಕತಾಯಪ್ಪ ರವರು ಅರ್ಜಿ ಸಲ್ಲಿಸಿ ವಳಗೆರಿ
ಸ.ನಂ.24/3 ರ ಜಮೀನನ್ನು ಸುಮಾರು 38 ವರ್ಷಗಳಿಂದ ವ್ಯವಸಾಯ
ಮಾಡಿಕೊಂಡು ಅನುಭವಿಸಿಕೊಂಡು ಬರುತ್ತಿದ್ದೇವೆ. ಆದರೆ ಸದರಿ ಜಮೀನು
ನಮ್ಮ ತಂದೆಯವರಾದ ಲೇಟ್ ಹನುಮ ಗಂಗಪ್ಪರವರಿಗೆ ಸಬ್ ರಿಜಿಸ್ಟ್ರಾರ್
ಆಫೀಸಿನಲ್ಲಿ ರಿಜಿಸ್ಟ್ರಾರ್ ಮಾಡಿಸುವಾಗ ಕೈತಪ್ಪಿನಿಂದ 24/3 ರ ಬದಲು 24/8
ಎಂದು ಕ್ರಯಪತ್ರದಲ್ಲಿ ಬರೆದಿದ್ದರಿಂದ ಅದೇ ಸ. ನಂ. 24/8 ಕ್ಕೆ ನೊಂದಣಿ
ಆಗಿರುತ್ತದೆ. ಆದರೆ ನಾವು ಅನುಭವದಲ್ಲಿರುವ ಜಮೀನು 24/3 ಆಗಿದ್ದು
ನಮಗೆ ಕ್ರಯಪತ್ರದಲ್ಲಿ ಬರೆದಿರುವ ಜಮೀನಿನ ಚಕ್ಕುಬಂದಿ : 24/3 ಕ್ಕೆ ತಾಳೆ
ಇರುತ್ತದೆ. ಆದ್ದರಿಂದ ಸದರಿ ಜಮೀನಿನ ಪಹಣಿಯಲ್ಲಿ ಹನುಮ ಅಂಗಪ್ಪನವರ
ಹೆಸರಿಗೆ 24/3 ರ ಪಹಣಿ ಬರೆದುಕೊಡುವಂತೆ ಕೋರಿರುವ ಬಗ್ಗೆ ಸಮ್ಮತ್
ರಾಜಸ್ವ ನಿರೀಕ್ಷಕರು ಸ್ಥಳ ತನಿಖೆ ಮಾಡಲು ಬಂದಿದ್ದಾಗ ಹಾಜರಿದ್ದ ನಾವುಗಳು
ಈ ಕೆಳಕಂಡಂತೆ ನಮ್ಮ ಅಭಿಪ್ರಾಯ ತಿಳಿಸಿರುತ್ತೇವೆ.

ಸದರಿ ಸ. ನಂ. 24/3 ರ ಜಮೀನನ್ನು ಹನುಮ ಗಂಗಪ್ಪ ರವರಿಗೆ
ಕರೆಯವಾದಾಗಿ ನಿಂದ ಸದರಿ ಜಮೀನಿನ ಸ್ವಾಧೀನದಲ್ಲಿದ್ದು ಹನುಮ
ಗಂಗಪ್ಪರವರು ನಿಧನ ಹೊಂದಿದ ನಂತರ ಅವರ ಮಗನಾದ ಹೆಚ್. ಶಂಕರಪ್ಪ
ರವರು ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಮನೆ ಕಟ್ಟಿಕೊಂಡು ವಾಸವಾಗಿರುತ್ತಾರೆ. ಆದರೆ
ಕ್ರಯಪತ್ರದಲ್ಲಿ ಸ. ನಮ. ನಮೂದಿಸುವಾಗ ಕೈತಪ್ಪಿನಿಂದ 24/3 ಕ್ಕೆ ಬದಲಾಗಿ
24/8 ಎಂದು ನಮೂದಿಸಿದ್ದರಿಂದ ಕಂದಾಯ ದಾಖಲೆಗಳಲ್ಲಿ
ಹನುಮಗಂಗಪ್ಪ ರವರ ಹೆಸರಿಗೆ ಪಹಣಿಯಲ್ಲಿ 24/8 ಮತ್ತು 24/3 ಈ
ಎರಡು ಹಿಂದೆ ಜಮೀನು ಹನುಮ ಜಿನ್ ಗುಲ್ವಾ ಎಂಬುವ ಮೂಲ

ಖಾತೆದಾರರಾದ್ದರಿಂದ ಹನುಮ ಗಂಗಪ್ಪ ಕ್ರಯಪತ್ರ ಬರೆಸಿಕೊಡಲಾದ 24/34 ಬರಹ ಕೈತಪ್ಪಿನಿಂದ 24/8 ಎಂದು ಬರೆದಿದ್ದಾರೆ. ಆದರಲ್ಲಿ ಮಲ್ಲೇಶ್ವರಂ. ಟೈಲರಿಂಗ್ ಕೋ ಆಪರೇಟಿವ್ ಸೊಸೈಟಿ ಆ (ರಿ) ರವರು ಲೇಔಟ್ ಮಾಡಿ ಈಗ ನಿವೇಶನಗಳನ್ನು ರಚಿಸಿ ವಿತರಣೆ ಮಾಡಿ ಈಗ ಆದರೆ ಹೆಚ್. ಶಂಕರಪ್ಪ ರವರ ಜಮೀನಾದ ಖಾಲಿ ಇರುತ್ತದೆಯಾದ್ದರಿಂದ ಕಂದಾಯ ದಾಖಲೆಗಳಾದ ಪಹಣಿಯಲ್ಲಿ 24/8ರ ಬದಲು 24/3 ಎಂದು ನಮೂದಿಸಲು ನಮ್ಮಗಳದೇನು ಅಭ್ಯಂತರವಿಲ್ಲವೆಂದು ಹೇಳಿ ಬರೆಸಿದ ಮಹಜರ್ ಓದಿಸಿ, ಕೇಳಿ ಸರಿಯಾಗಿದೆ ಯೆಂದು ಒಪ್ಪಿ ಸಹಿ ಮಾಡಿದೆ.

- 1.ಸಹಿ 16 ಸಹಿ
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4. ಸಹಿ 19ಸಹಿ
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- 11 ಸಹಿ 26ಸಹಿ
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ನನ್ನ ಸಮಕ್ಷಮ
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ರಾಜಸ್ವ ನಿರೀಕ್ಷಕರು, ಕೆಂಗೇರಿ ವೃತ್ತ

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Value of Stamp

Rs. P.

Date of execution of document :-

Reference to previous Registration :-

Book No.

Register No. With year

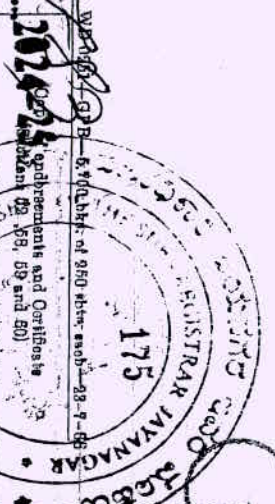
Volume No.

Page No.

Book-1
Rule 16 (i)

Documents Relating to Immovable Property

ಇಸಿ ಕಾಳಿಯ ನಟು ಅರ್ಜಿ ನಂಬರ್ 1/1702



ಮರಳಿ ಕೋಟೆ ಮುಖದ ಮರಳಿ ಕೋಟೆ ಕಡೆ

3000/1 by (Sri) M. S. Srinivasuluiah

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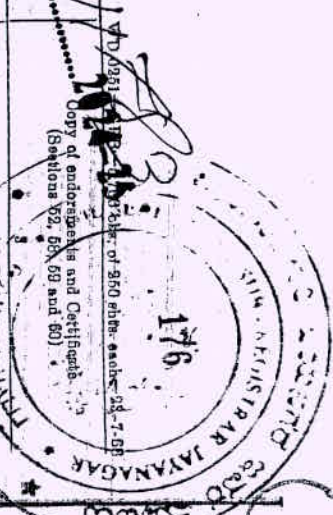
Reference to previous Registration:-

Book No.

Register No. With year

Volume No.

Page No.



ಮೈಸೂರು ನಗರ ಪಂಚಾಯತ್

ನಗರ ಪಂಚಾಯತ್ ಮೂಲಕವಾಗಿ ಮೂಡಿಸಿದ ಭೂಮಿ ದಾಖಲೆಯು ಈ ಕೆಳಕಂಡಂತಿರುತ್ತದೆ.

ಮೂಲ ದಾಖಲೆಯು ಈ ಕೆಳಕಂಡಂತಿರುತ್ತದೆ.

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ಮೂಲ ದಾಖಲೆಯು ಈ ಕೆಳಕಂಡಂತಿರುತ್ತದೆ.

ಈ ಸಲ ಅರ್ಜಿಯು 3 / ಕಾಣಿಸುವ ಕೊರತೆ
 3 ನೇ ಕಾರ್ಡ್ ನಲ್ಲಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11833/1422-25

CERTIFICATE

Certified that a sum of Rs. 503/- (In words Rupees..... only)
 (In words Rupees.....)
 in cash has been remitted by Sml/Sr.
 R/o..... Towards Stamp Duty

ದಿನಾಂಕ: 28-10-2014 ಉಪನಿರ್ದೇಶನಾಧಿಕಾರಿ
 ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ

ಈ ಛಾಪು ಪ್ರತಿಯಲ್ಲಿ ತಪ್ಪುಗಳಿಲ್ಲ

ಸಲ ಅರ್ಜಿ ಸಲ್ಲಿಸುವುದು 28-10-2014
 ಸಲ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ ದಿನಾಂಕ 28-10-2014
 ಸಲ ಸಂಬಂಧಿಸಿದ ದಿನಾಂಕ 29-10-2014
 ಸಲ ಕೊಟ್ಟ ದಿನಾಂಕ
 ಸಲ ತಯಾರಿಸಿದುದು
 ಸಲ ತಾಳೆ ಮಾಡಿದುದು



“ಯಥಾ ನೆಕಲು”

ಹಿರಿಯ ಉಪನಿರ್ದೇಶನಾಧಿಕಾರಿ
 ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ

TYPED COPY OF
ANNEXURE - 'M'

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ಸನ್ ವಂದು ಸಾವಿರದ ವಂಭೈನೂರ ಅರವತ್ತೇಕನೇ ಇಸವಿ ಫೆಬ್ರವರಿ ತಾರೀಖು ಆರರಲ್ಲೂ (6-2-1967) ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲ್ಲೂಕ್, ಕೆಂಗೇರಿ ಹೋಬಳಿ, ವಳಗೆರೆಹಳ್ಳಿ ಗ್ರಾಮದಲ್ಲಿರುವ ಜಿರಾಯ್ತ ಕಸಬಿನ ಯಾದವ ಕುಲದ ಮುನಿತಿರುಮಳಪ್ಪನವರ ಎರಡನೇ ಮಗ ಸುಮಾರು 40 ನಲವತ್ತು ವರ್ಷ ವಯಸ್ಸಿನ ಹನುಮ ಗಂಗಪ್ಪ ಉರುಫ್ ಚಿಕ್ಕ ತಾಯಪ್ಪನವರಿಗೆ ಬೆಂಗಳೂರು ಸಿಟಿ ಜಿನ್ನಿಪೇಟೆ ಬಿ 304ನೇ ನಂಬರ್ ಮನೆಯಲ್ಲಿ ವಾಸ ವಾಗಿರುವ ಬೋಯಿ ಜನಾಂಗದ ಹನುಮಯ್ಯನವರ ಸಾಕುಮಗ ಸುಮಾರು 45 ವಯಸ್ಸಿನ ಜಿರಾಯ್ತ ಕಸಬು ಮತ್ತು ಜಿನ್ನಿ ಕೂಲಿ ಕಸಬು ಮಾಡುವ ಮಾದಯ್ಯ ವಂದು ಮತ್ತು ಸದರಿ ಮಾದಯ್ಯನವರ ಹೆಂಡತಿ ಸುಮಾರು 35 ವರ್ಷ ವಯಸ್ಸಿನ ಹನುಮಕ್ಕ ಆದ ನಾವಿಬ್ಬರೂ ಶೇರಿ ಬರೆದುಕೊಟ್ಟ ಕ್ರಯಪತ್ರದ ಕ್ರಮ ಏನೆಂದರೆ ಈ ದಿವಸ ನಂಮಗಳ ಜರೂರು ನಿಮಿತ್ಯ ನಂಮ್ಮಗಳ ಸ್ವಯಾರ್ಜಿತವಾಗಿ ನಾವು ತಾ 18-1-1956 ರಲ್ಲಿ ಮರಣಪ್ಪನಿಗೆ ಬಂದು ಸದರಿ ಯವರಿಂದ ನಮಗೆ ತಾ:15-9-1961 ರಲ್ಲಿ ರಿ.ನಂ.3210 ಆಗಿ ಬುಕ್ ವಾಲ್ಯೂಂ 265 ಪೇಜು 84 ರಿಂದ 86 ರವರುವಿಗೆ ರಿಜಿಸ್ಟರಾಗಿರುವ ಪತ್ರ ಮೂಲ್ಕ ನಂಮ್ಮಗಳ ಸ್ವಾಧೀನಾನುಭವಕ್ಕೆ ಬಂದು ನಂಮ್ಮ ಸ್ವಯಾರ್ಜಿತವಾದ ಸ್ವತ್ತನ್ನು ನಿಮಗೆ ಗೌರ್ಮೆಂಟ್ 3000-00 ಮೂರು ಸಾವಿರ ರೂಪಾಯಿ ಗಳಿಗೆ ಕ್ರಯಕ್ಕೆ ಕೊಟ್ಟಿರುತ್ತೇವೆ. ಈ ಬಾಬು ಪೂರ್ಟ್ ಮೊಬಲಗು ಮೂರು ಸಾವಿರ ರೂಪಾಯಿಗಳನ್ನು ಈ ಪತ್ರ ರಿಜಿಸ್ಟರ್ ಮಾಡಿಸುವ ವೇಳೆ ಸಬ್ ರಿಜಿಸ್ಟ್ರಾರ್ ರವರ ರೂಬು ರೂಬು ಪಡೆದುಕೊಂಡು ರಿಜಿಸ್ಟರ್ ಮಾಡಿಸಿ ಕೊಡುತ್ತೇವೆ. ಸ್ವತ್ತನ್ನು ಈ ದಿವಸವೇ ನಿಮ್ಮ ಸ್ವಾಧೀನಕ್ಕೆ ಜಿಟ್ಟಿರುತ್ತೇವೆ. ಈ ಲಾಗಾಯ್ತು ಇದಕ್ಕೆ ಕಟ್ಟತಕ್ಕ ಕಂದಾಯ ವಗೈರೆ ಸರ್ಕಾರಕ್ಕೆ ನೀವೇ ಕಟ್ಟಿ ಕೊಂಡು ನಿಮ್ಮ ಪುತ್ರ ಪೌತ್ರ ಪಾರಂಪರ್ಯವಾಗಿ ಅನುಭವಿಸಿಕೊಂಡು ಬರತಕ್ಕದ್ದು. ಇದರಲ್ಲಿರತಕ್ಕ ಜಲ,ತರು,ಪಾಷಾಣಾದಿ, ಅಷ್ಟ ಭೋಗಗಳು ಏನಿದ್ದಾಗ್ಯೂ ನಿಮ್ಮದಾಗಿರುತ್ತೆ. ಈ ಸ್ವತ್ತು ನಂಮ್ಮಗಳ ಸ್ವಯಾರ್ಜಿತವಾಗಿ ನಾವೇ ಖುದ್ದು ಸಂಪಾದನೇ

ಮಾಡಿದ್ದಾಗಿರುತ್ತೆಯಾಗಿ ಇದರ ಮೇಲೆ ಯಾರಿಗೂ ಯಾವ ವಿಧವಾದ ಹಕ್ಕು ಇರುವುದಿಲ್ಲ. ಈ ಸ್ವತ್ತಿನ ವಿಚಾರದಲ್ಲಿ ಇದರ ಮೂಲಕ ಹಕ್ಕುದಾರರಾದ ನಂಜಪ್ಪನವರಿಗೆ ಮತ್ತು ನಂಮ್ಮಗಳಿಗೆ ಶಿವಿಲ್ ಕೋರ್ಟಿನಲ್ಲಿ ವ್ಯವಹಾರ ನಡೆದು ಯಾವತ್ತು ಈ ಷೆಡ್ಯೂಲ್ ಸ್ವತ್ತು ನಂಮ್ಮಗಳಿಗೆ ಶೇರತಕದಂತೆ ಬೆಂಗಳೂರು 2 ನೇ ಮುನಿಶಿಪ್ ಕೋರ್ಟು ಒ. ಎಸ್. ನಂ. 298/1962 ನೇ ನಂಬರ್ ದಾವೆ ವಿವಾದ ನಡೆದು ನಂಮ್ಮಗಳ ಹಕ್ಕು ಸ್ಥಿರಪಟ್ಟು ಆ ಬಗ್ಗೆ 2 ನೇ ಮುನಿಶಿಪ್ ರವರು ತಂಮ್ಮ ತೀರ್ಮಾನವನ್ನು ನಮಗೆ ಅನುಕೂಲವಾಗಿ ಮಾಡಿ ಆರ್ಡರ್ ಮಾಡಿರುತ್ತಾರೆ. ಅಲ್ಲದೇ ಈ ಸ್ವತ್ತನ್ನು ನಾವೇ ಖುದ್ದು ಸಾಗುವಳಿ ಮಾಡಿಸಿರುತ್ತೇವೆ. ಈ ಎಲ್ಲಾ ಕಾರಣಗಳಿಂದಲೂ ಈ ಸ್ವತ್ತು ನಿರುಪಾಧಿಕವಾಗಿರುತ್ತೆ ಎಂದು ನಿಮಗೆ ಪೂರ್ತಾ ನಂಜಕೆ ಹೇಳಿ ಈ ಕ್ರಯ ಮಾಡಿರುತ್ತೇವೆ. ಈ ದಿನ ಇದರ ಮಾಲೀಕತ್ವ (ಟೈಟಲ್) ನಿಮಗೆ ವಹಿಸಿರುತ್ತೇವೆ. ವಂದು ವೇಳೆ ಇದರ ವಿಚಾರವಾಗಿ ಯಾವ ವಿಧವಾದ ತಂಟೆ ತಕರಾರುಗಳೇ ಬಂದಾಗ್ಯೂ ಸಹಾ ನಾವೇ ಖುದ್ದು ನಿಂತು ನಂಮ್ಮಗಳ ಸ್ವಂತ ಖರ್ಚಿನಿಂದ ಪರಿಹರಿಸಿಕೊಡುತ್ತೇವೆ. ವಂದು ವೇಳೆ ಇದರ ವಿಚಾರವಾಗಿ ಏನಾದರೂ ತೊಂದರೆ ಬಂದು ನಾವು ಪರಿಹಾರ ಮಾಡಿಕೊಡಲು ಉದಾಶೀನ ಮಾಡಿದಲ್ಲಿ ಆಗ್ಗೆ ನಿಮಗೆ ತಗಲತಕ್ಕ ನಷ್ಟ ವೆಚ್ಚಗಳನ್ನು ನಮ್ಮಿಂದಲೂ ನಂಮ್ಮಗಳ ಚರ ಸ್ಥಿರ ಆಸ್ತಿಗಳಿಂದಲೂ ವಸೂಲ್ ಮಾಡಿಕೊಳ್ಳಲು ಸಂಪೂರ್ಣ ಹಕ್ಕುದಾರರಾಗಿರುತ್ತೀರಿ. ದಾಖಲೆ ಬಗ್ಗೆ ಮೂಲ ಕಾಗದಗಳು. ಕೋರ್ಟು ಆರಡರ್ ಕಾಪಿ ಕಂದಾಯದ ರಶೀದಿ ಪಟ್ಟಿ ಆರ್.ಆರ್. & ಐ ಎಲ್ ಕಾಪಿಗಳೂ ಪಹಣಿ ಕಾಪಿ ಇವುಗಳನ್ನು ನಿಮ್ಮ ವಶಾ ಕೊಟ್ಟಿರುತ್ತೇವೆ. ಸ್ವತ್ತಿನ ತಪ್ಪೀಲ್ ಚಕ್ಕುಬಂದಿ ವಗೈರೆ ಬೆಂಗಳೂರು ದಕ್ಷಿಣ ತಾಲ್ಲೋಕ್, ಕೆಂಗೇರಿ ಹೋಬಳಿ, ವಳಗೆರೆ ಹಳ್ಳಿ ಗ್ರಾಮಕ್ಕೆ ಶೇರಿದ ಸರ್ವೆ ನಂಬರು 24/8 ಯಿಪ್ಪತ್ತ ನಾಲ್ಕು ಸಬ್ ನಂಬರು ಎಂಟು ಖುಷ್ತಿ ಎರಡು ಎಕರೆ ವಂದು ಗುಂಟೆ ಖರಾಬ್ ವಂದು ಗುಂಟೆ ಐನ್ ಎರಡು ಎಕ್ರೆಗೆ ಆಕಾರ ಎರಡು ರೂಪಾಯಿ ಹತ್ತು ಆಣೆ (2-0 2-10-0) ಉಳ್ಳ ಪೂರ್ತಾ ಸ್ವತ್ತಿಗೆ ಚಕ್ಕುಬಂದಿ :

ಪೂರ್ವಕ್ಕೆ : ಹಳ್ಳ
ಪಶ್ಚಿಮಕ್ಕೆ : ಸಾಕಮ್ಮನವರ ಮಗ ಗಾಳರಸಪ್ಪನವರ ಹೊಲ,
ಉತ್ತರಕ್ಕೆ : ದನಗಲ ಓಣಿ.
ದಕ್ಷಿಣಕ್ಕೆ : ಅಕ್ಕಯ್ಯಮ್ಮ ಮೂಗಮ್ಮ ಮತ್ತು ಬಸವರಾಜು ಇವರುಗಳ
ಜಮೀನು.

ಈ ಮಧ್ಯೆ ಇರತಕ್ಕ ಪೂರ್ಣ ಜಮೀನನ್ನು ಈ ಮೇಲ್ ಕಂಡಂತೆ
ನಿಮಗೆ ಕ್ರಯಕ್ಕೆ ಕೊಟ್ಟಿರುತ್ತೇವೆ ಎಂದು ನಮ್ಮ ಖುದ್ದ ಮನೋರಾಜಿಯಿಂದ
ಒಪ್ಪಿ ಬರೆಸಿಕೊಟ್ಟ ಕ್ರಯಪತ್ರ ಸಹಿ.

ಈ ಎಡಗೈ ಹೆಬ್ಬೆಟ್ಟಿನ ಗುರ್ತಿನ ರುಜು ಮಾದಯ್ಯ ಹಾಕಿದ್ದಕ್ಕೆ ಬಿಕ್ಕಲಂ ಬರಹ
ಈ ಎಡಗೈ ಹೆಬ್ಬೆಟ್ಟಿನ ಗುರ್ತಿನ ರುಜು ಹನುಮಕ್ಕ ಹಾಕಿದ್ದಕ್ಕೆ ಬಿಕ್ಕಲಂ ಬರಹ.

ಸಾಕ್ಷಿಗಳು

ಸೈಯ್ಯದ್ ಪೀರು ಸಾಬಿ,
ಸಾಕ್ಷಿ ತಂದೆ ಸೈದು ಸಾಬಿ ವಳಗೇರಿ ಹಳ್ಳ
ಜಿ. ಅರಸಪ್ಪನ ಸಾಕ್ಷಿ ತಂದೆ ಗಾಳಪ್ಪ ವಳಗೇರಿ ಹಳ್ಳ ಬಿಕ್ಕಲಂ
ಆರ್. ನರಹರಿಯಪ್ಪ, ಶ್ಯಾನುಭೋಗ್, ಕೆಂಗೇರಿ

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Volume 629, pages 174-176.

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IMMIGRATION INDIA
A2-103
03 FEB 2019
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AIRPORT/PORT CHENNAI

IMMIGRATION SINGAPORE
LANDING PASS
(Regulation 16(2))
25 JAN 2019
P015

ARRIVAL
25 APR 2021

SPECIAL PASS
01 SEP 2022
CHINA

on cover is 26 pages. This passport contains 76 pages.



MIYANJI

TARIQ AHMED

[illegible]

BANGALORE, KARNATAKA

BENGALURU

04/09/2018

S6265258

16/06/1985

03/09/2028

P<INDMIYANJI<<TARIQ<AHMED<<<<<<<<<<<<<<<<<<<<<<<<<
S6265258<4IND8506162M2809034<<<<<<<<<<<<<<<<<8